UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
LOUISVILLE DIVISION

UNITED STATES OF AMERICA,	)	Case No. 3:22-CR-00094-DJH
Plaintiff,	)	**REDACTED**
v.	)	
SUZANNE CRAFT,	)	
Defendant.	)	March 8, 2023 Louisville, Kentucky

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VOLUME 3
TRANSCRIPT OF JURY TRIAL
BEFORE HONORABLE DAVID J. HALE
UNITED STATES DISTRICT JUDGE

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APPEARANCES:

For United States: Christopher C. Tieke
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Louisville, KY 40202

For Defendant: Angela M. Rea
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[Defendant present.]

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Proceedings recorded by certified stenographer, transcript produced by computer.

(Begin proceedings in open court at 9:05 a.m. Jury out. Defendant out.)

THE COURT: All right. Good morning, we're back on the record in U.S. v. Craft.

Ms. Rea, you -- I think you mentioned your client is down the hall --

MS. REA: Yes, Your Honor.

THE COURT: -- on her way back into the courtroom.

MS. REA: Yes, sir.

THE COURT: All right. Well, we're starting a little bit behind schedule this morning. That is owing to some work we were doing on the draft instructions. So I anticipate that during the first break of the morning, we'll have draft instructions to pass along to you.

I anticipate there will be at least some modifications necessary. We always, of course, tailor parts of the standard instructions based upon the parties' positions and arguments taken. So we can address those possibilities.

We'll talk during the midday break about when we want to schedule an instructions conference. Probably, it would seem to me, on Thursday, tomorrow.

All right. What is the -- what's the current schedule looking like?

MR. TIEKE: Your Honor, we'll have Ms. Connie Pineda. And then we intend to proceed from there to a few of the

neighbors, Mr. Lanham, Mr. Recktenwald, and that would get us likely through the morning potentially with maybe one additional witness, an officer with the LMPD that would likely be maybe ten minutes. So we might be able to fit all four of those in in the morning.

THE COURT: All right. What about the issue with respect to -- remind me again why the neighbor with the video, his testimony would not be simply cumulative with respect to the driveway painting.

MR. TIEKE: Sure, Your Honor. I don't think there's any argument from the parties that this would be cumulative. I know that the Court raised that issue.

It's the United States' understanding that the defendant -- the defense would have -- would like to examine this witness also on a separate issue that maybe hasn't even been raised yet. His testimony is also relevant for the separate reason of the fact that his address is used on the mailing that's the subject of Count 5 as well, the 505 address.

In addition, he also has video evidence that would color the second orange painting with additional information, being that it would pick up with where that individual returns after doing the second orange painting, because if the Court will recall, the video that we've introduced stops at the end of the painting, and this would show that individual returning.

And, in fact, I think that addresses a point that was raised

directly in the defense's opening statements regarding not conceding, number one, that it's her on the video; and, number two, the inference to watch where people went and watch where people go on these videos. That clears up that -- any issue that the jury would have with where that individual goes after that painting. And in addition to that, Mr. Lanham also has video of the gold painting showing a view of where that person comes from and then returns to, namely being Craft's driveway.

(Defendant entering courtroom.)

MR. TIEKE: And so it's not our intent to belabor these driveway paintings, but we do think that this is, you know, important and relevant evidence that would answer some questions for the jury about issues that the defense raised as to where folks go, what folks do. And in addition, for the reasons that it's my understanding that the defense has -- would also like to examine this witness for other reasons.

MS. REA: Thank you, Your Honor.

We did indeed also place Mr. Lanham under subpoena. We intended to call him and to examine him. The driveway paintings, you know, being what they are -- and I know we've heard a lot about them. He is actually the only person that I'm aware of that has video from the first evening. That's why we intended to call him.

I did not intend to make any objection about evidence that the United States was going to present through him being

cumulative. And then we had just some other questions for him as well. I will also say, I think -- my anticipation would be that his testimony with respect to these issues is not going to be as extensive as prior witnesses. I think it'll be briefer.

THE COURT: All right. Well, of course, as you-all know, I permitted the evidence regarding the driveway paintings, even though that is not charged conduct, because it's -- represents background, res gestae. It would alternatively, under 404(b), I think be admissible for purposes of identification and motive.

But I appreciate, Mr. Tieke, your -- your observation that the Government does not intend to belabor the evidence of the driveway painting. I do think the jury has heard quite a bit about those three incidents. The record, I think, clearly shows the driveways were painted. And so that -- so to the extent that you are adding to it for the reasons that you've indicated, that's fine, but I don't think we need to go back and reestablish that the driveway was painted. I think we've heard that evidence in sufficient amounts so -- very well. Then we'll proceed.

He will be the second witness; is that right?

MR. TIEKE: Yes, Your Honor. We anticipate him being the second witness.

And I think Ms. Zimdahl has some points regarding how we've essentially attempted to expedite the next witness with respect

to the driveway paintings as well.

MS. ZIMDAHL: Your Honor, if I may address those. Our next witness is Connie Pineda. She's another member of the victim family. I'm presenting her, and I do plan to address the driveway paintings with her. I plan to show those to her, just in full candor to the Court. I don't plan to replay the videos.

I do think there has at least been touching on this idea that the victim family is either shading their testimony or fabricating this. So I think it is fair to at least raise with her what happened, her experience with this. I don't plan to belabor it, and we'll move quickly.

I do plan to show her the videos as they relate to the letters in the yard. I think those are a completely separate subset and subject of the case. So I did just want to raise that with the parties and the Court today.

THE COURT: All right. Any response, Ms. Rea?

MS. REA: No, Your Honor.

THE COURT: All right. Let's -- are we ready to have the jury return to the courtroom?

MS. ZIMDAHL: Yes, Your Honor.

MS. REA: Yes.

THE COURT: All right. Let's have the jury return to the courtroom, and let's -- your first witness is ready to proceed?

MR. TIEKE: Yes, Your Honor.

MS. ZIMDAHL: Yes.

THE COURT: While we're waiting on them, let me remind counsel of our discussion about the agreed upon 404(b) instruction. If it becomes necessary, I am relying on you to signal --

MS. REA: Yes, Your Honor.

MS. ZIMDAHL: Yes, Your Honor.

THE COURT: -- about that.

(Jury in 9:15 a.m.)

THE COURT: Good morning, members of the jury.

MULTIPLE SPEAKERS: Good morning.

THE COURT: Does everyone have their notebooks straight?

MULTIPLE SPEAKERS: Yes.

THE COURT: All right. Good. We got to make sure about that.

All right. We are ready now to proceed. We're starting just a few minutes behind, but in my experience, we are keeping about as close to schedule as modern trials permit. So I'm happy to report that to you. We are going to continue with testimony now.

Is the United States prepared to call its next witness?

MS. ZIMDAHL: We are, Your Honor, and the United States would call Connie Pineda to the stand.

(CONNIE PINEDA, called by the Government, sworn.)

DIRECT EXAMINATION

BY MS. ZIMDAHL:

Q. Good morning, Ms. Pineda. Could you state your name for the jury, please.

A. Connie Pineda.

Q. And, Ms. Pineda, where do you live?

A. 510 [redacted].

Q. And is that home in the Lake Forest subdivision in Louisville, Kentucky?

A. Yes.

Q. Who do you live there with?

A. My wife and five kids.

Q. I'm gonna show you now what's been marked as Government's Exhibit 15. It's already in evidence.

MS. ZIMDAHL: So if we could put that up, please.

Q. Connie, is this a picture of your family?

A. Yes.

Q. And is that your wife, Michella, in the picture?

A. Yes.

Q. And your five children?

A. Yes.

Q. Now, you mentioned your wife. What is her name?

A. Michella.

Q. Does your wife's name, Michella, does that end with an "A" at the end?

A. Yes.
Q. Does your wife ever go by Michelle formally?
A. No.
Q. Does she ever go by Michelle with friends?
A. No.
Q. Is it only Michella with an "A" at the end?
A. Yes.
Q. Now, Connie, do you sometimes refer to her as "Chell"?
A. Yes.
Q. As a nickname?
A. "Chell" or "Chella."
Q. And so you might sometimes say that today when you're referring to her?
A. Yes.
Q. Connie, do you your and wife, Michella, do you share a Facebook page?
A. Yes.
Q. Do you also sometimes text from Michella's phone for her?
A. Yes.
Q. Send things out that she might ask you to respond to?
A. Yes.
Q. Like married couples sometimes do?
A. Yes.
Q. Connie, what do you do for a living?
A. I'm retired.

Q. And where did you retire from?
A. Mag-Instrument.
Q. What did you do for Mag-Instrument before you retired?
A. I was a lead person for second operations and C&C.
Q. How long did you work for Mag-Instrument?
A. Twenty-two years.
Q. Connie, do you have a pension from your job at Mag-Instrument?
A. Yes.
Q. And looking at this picture that we have up in front of us, I imagine that you have plenty to keep you busy these days with these five kids.
A. Yes.
Q. Are you homeschooling some of them right now?
A. Yes.
Q. Approximately when did your family move into the Lake Forest neighborhood?
A. April of 2019.
MS. ZIMDAHL: And if we could put up Government Exhibit 16, please.
Q. Is this your house at 510 [redacted]?
A. Yes.
Q. Is that your wife pictured in front of your home?
A. Yes.
Q. By that fountain area there?

A. Yes.
Q. And did you and Michella do quite a bit of work to fix up the yard at your home after you moved in?
A. Yes.
Q. Clean up that fountain area?
A. Yes.
Q. Get it looking nice?
A. Yes.
Q. How did you feel about this house when you first moved in?
A. We didn't care too much for the outside, but we fell in love with the inside.
Q. Did you have hopes that you would live in this house for a long time?
A. Yes. This was supposed to be our forever home.
Q. And why was that?
A. Because with Chell in the military, we moved around a lot. Like, every couple years we would uproot the kids, and we didn't want to uproot them anymore. So we had planned on staying here, thought we'd have grandkids here.
Q. And how long had you -- have you and Michella been together at this point?
A. When we moved in or now?
Q. You can tell us both.
A. When we moved in, we were together 15 years; and now it's been 19 years.

Q. When you first moved into your home at [redacted], did you run into some issues with the basement having flooded?

A. Yeah.

Q. What happened with that?

A. We had just signed loan docs. And I walked into the house, just kind of walking through, checking everything out, went and checked out the basement, and that's when I noticed there was like six inches of water.

Q. Did you have to deal with that right away?

A. Absolutely.

Q. Get the water cleaned up?

A. Yeah. Tried to call the real estate agent so they can get ahold of their agent to see if there was anything we can do with insurance or whatever.

Q. And in the course of cleaning up that flood, did you find things that you had to clean out of the basement?

A. Yeah, like a whole house that they left for us because I guess they didn't want to bring it up the stairs. So, yeah, the whole basement was full of stuff.

Q. What did you do with the things that you cleaned out of the basement?

A. We brought it out in front of our house and put "free" on it.

Q. Can you tell us about some of the things that you took out of the basement and put outside to give away or throw away as

free?
A. There was a pool table, two like rocking chairs, old school TV, magazines, books, a desk, a little roller chair/desk like that one -- or chair, some wood trimming, paint, and I think that's it. There might be more, but I can't remember right now.
Q. It sounds like a whole lot of things were down there.
A. Yeah -- oh, a refrigerator, a big refrigerator. That's still there.
Q. So you kept the refrigerator?
A. Yeah. We couldn't get it up.
Q. Too heavy?
A. Yeah.
Q. And everything else, did you take it out, all those items, and put them outside?
A. Yes, yes.
Q. Where did you put them?
A. Out in the front, like right by our mailbox.
Q. Okay. By your mailbox?
A. Uh-huh.
Q. And when you moved into this home, this house that we see here, had it been recently remodeled?
A. Yeah, that's what we were told.
Q. You were told that when you moved in?
A. Yes.
MS. ZIMDAHL: You can take that photo down. Thank

you.

Q. Now, Connie, when you moved in, did you meet a woman by the name of Suzanne Craft sometime after you moved in?

A. Yes.

Q. Did she also live on the cul-de-sac, [redacted]?

A. Yes.

Q. Where was her home, Ms. Craft's, in relation to yours?

A. Two doors down.

Q. Do you remember her address?

A. Yeah.

Q. What was that?

A. 507 [redacted].

Q. Is there a house between Ms. Craft's house? You said two doors down. So is there a house between her house and your house?

A. Yes.

Q. And at the time, a couple of years ago, who lived between you and Ms. Craft?

A. Ms. Betty.

Q. Is Ms. Betty's last name Probst?

A. Yes.

Q. And is she an older lady?

A. Yes.

Q. Where does Ms. Betty Probst live now?

A. She's staying at an assisted living home.

Q. And have you visited her there?
A. Yes.
Q. Have you been helping to take care of her home?
A. Yes.
Q. Now, Connie, I'm gonna ask you, do you see Suzanne Craft here in court today?
A. Yes.
Q. Could you please point her out and identify her.
A. She's wearing a black jacket.
MS. ZIMDAHL: Your Honor, could the record reflect the identification of the defendant.
THE COURT: It will so reflect.
THE WITNESS: I'm sorry?
MS. ZIMDAHL: The record's just gonna reflect the identification of the defendant.
BY MS. ZIMDAHL:
Q. When you moved into your home around April of 2019, did you see Suzanne Craft around that time?
A. Yeah, briefly.
Q. When was that?
A. I had just gotten back home from the storage unit, and I walked in the house to tell Chell that I was home, and I saw Craft standing there.
Q. What were you doing at the storage unit?
A. Getting all of our boxes. They'd been there for a couple

years.

Q. Was that when you-all had been living elsewhere for a while?

A. Yes.

Q. In the Philippines?

A. Yes.

Q. So Ms. Craft was in your home, and you were moving in. Was someone helping you move at the time?

A. Yes, my wife's half brother and her father.

Q. Were your older children with you as well?

A. Yes.

Q. And who were those children?

A. S.P.1[redacted] and K.P.[redacted].

Q. Did they come in the house with you, or did they remain outside moving items?

A. No, they stayed outside moving the boxes into the garage.

Q. When you saw the defendant, Suzanne Craft, that day, did she bring anything to your family?

A. Yes.

Q. What did she bring?

A. A bag to like make spaghetti. It was spaghetti, spaghetti sauce, some bread, and something to drink.

Q. Did you notice anything about that food?

A. Yeah, it was expired.

Q. Did you see the receipt that was in connection with the food that the defendant brought to you?

A. Yes.
Q. And what, if anything, did you notice about that receipt?
A. Chell had said that the receipt said "FS balance." And I asked her what that meant, and she said "food stamp balance."
Q. And what, if anything, did you take that to mean about the financial condition of the defendant?
A. That maybe she needed some help, maybe she was struggling a little bit.
Q. Did you then discuss with your wife potentially returning that food to Ms. Craft?
A. Yes.
Q. And what did you decide?
A. We decided not to because she might be embarrassed and that it was rude.
Q. Now, did you later learn that the defendant lived with her daughter, S.W.[redacted], at 507?
A. Yes, yes.
Q. Approximately how old was S.W.[redacted] at that time, back in 2019, when you first moved in?
A. Maybe 10 or 11.
Q. Were you and your family, Michella and your children, were you generally cordial with Ms. Craft and her daughter after you moved in?
A. Yes.
Q. Friendly?

A. Yes.
Q. Neighborly?
A. Yes.
Q. Did you hang out with them a lot?
A. No.
Q. Did your children play outside in the cul-de-sac with S.W.[redacted]?
A. No.
Q. Were they outside at the same time?
A. Yeah.
Q. But they didn't generally play together?
A. No.
Q. Now, turning your attention to August -- late summer, mid summer, sometime in that time frame of 2019, shortly after you've moved in, was there an incident involving your children and Craft's daughter, S.W.[redacted]?
A. Yes.
Q. Did that incident involve the defendant's daughter, S.W.[redacted], using a racial slur around your children --
A. Yes.
Q. -- S.P.2[redacted] and K.P.?
A. Yes.
Q. And you learned about that?
A. I'm sorry?
Q. Did you learn about that?
A. Yes.

Q. What, if anything, did you and Michella instruct your children to do after you learned that S.W. had used a racial slur?

A. Just to stay away from her, and if you see her outside, just come in the house.

Q. Did your children follow your instructions?

A. Yes.

Q. Following that incident, did you have many interactions with Ms. Craft?

A. No.

Q. So I'd like to move forward, okay, if you could think forward with me to March 22nd of 2020. Was your wife, Michella, pregnant at this time?

A. Yes.

Q. Quite far along?

A. Yes.

Q. Were there multiple incidents that day at your home involving the defendant?

A. Yes.

Q. So if we could turn to the first incident that day. Were you in the backyard smoking that day when Michella came to get you?

A. Yes.

Q. And did you learn from Michella that Ms. Craft was banging on your front door?

A. Yes.
Q. And did you also learn that Ms. Craft had used a racial slur?
A. Yes.
Q. What did you do when you learned this?
A. After she told me what Ms. Craft said, we walked around to the front door to see if she was still there, but I had saw her pulling off and leaving.
Q. So I want to go through that a little bit slowly. And you said you saw "her" pulling off and leaving. Who did you see leaving?
A. Craft.
Q. And when you said "pulling off and leaving," can you describe what you mean by that?
A. She would -- she was backing out of the driveway and then went around the cul-de-sac and left.
Q. Whose driveway was she backing out of?
A. Hers.
Q. And is that her home at 507?
A. Yes.
Q. And what was she driving?
A. A white Lexus.
Q. And how did you know that that white Lexus was her vehicle?
A. I seen her as she was coming around.
Q. And have you previously seen her drive that same white Lexus

before?
A. Yes.
Q. Just generally to try to place this in time, do you recall about what time of day this first incident occurred? Morning? Afternoon?
A. It was early afternoon.
Q. After you saw Ms. Craft leave, what did you do?
A. We went back in the house.
Q. So moving forward a few hours later in the day, did something else happen involving Ms. Craft and her vehicle that day?
A. Yes.
Q. When this happened, was your daughter S.P.2[redacted] in the cul-de-sac?
A. Yes.
Q. And she was on a bike?
A. Yes.
Q. Connie, did you personally observe Ms. Craft in the cul-de-sac that day?
A. Yes.
Q. Could you hear Ms. Craft or could you only see her?
A. Only see her.
Q. And where were you that you were able to see what happened?
A. On the side of my house, like by the kitchen/dining room area.

Q. Were you outside the house or inside?
A. Outside.
Q. But you were too far away to hear anything?
A. Yeah, I was too far.
Q. What did you see happen?
A. I just saw Ms. Craft come home, and she pulled up right -- like right on top of S.P.2[redacted]'s bike.
Q. Did you see anything else?
A. I just saw her roll her window down and her mouth moving, but I don't know what she said at that time.
Q. Did you see S.P.2[redacted] do anything after that happened?
A. She took off back home.
Q. Did you subsequently learn from members of your family the defendant, Craft, had threatened S.P.2[redacted]?
A. Yes.
Q. What did you do after you learned this?
A. I asked Chell what happened. She told me what happened. We went around to the front yard, and that's when I saw Craft like riding a bike in front of our house. And I was trying to not react to what Ms. Craft had done. And I didn't want to embarrass Chell, because she gets embarrassed really easy so -- but Chell said, "You have 30 seconds to say something." And like within 10 seconds, she just went off.
Q. So she didn't give you your full 30 seconds?
A. No.

Q. You mentioned you saw Ms. Craft riding a bike in a figure eight in front of your house.
A. Yes.
Q. Before that time, had you ever seen Ms. Craft on a bike before?
A. No.
Q. And so you go around in front of your house. What are you thinking in that moment, just --
A. I was angry and just, like, why would an adult say something to a child?
Q. Was anyone else outside at that time?
A. K.P. and my youngest, D.P.[redacted].
Q. Was Ms. Craft's daughter outside anywhere?
A. Yes.
Q. Where was she?
A. She was riding her bike.
Q. And you mentioned that Michella didn't give you your full 30 seconds.
A. No.
Q. And you said she went off.
A. Yeah.
Q. Did she yell at Defendant Craft?
A. Yes.
Q. So there was a fair bit of yelling?
A. Yes.

Q. And at some point does Michella go back inside the house?
A. Yes.
Q. Did you remain outside?
A. Yes.
Q. At that point did you say anything to the defendant?
A. Yes, because Craft still was saying "what I say" or "what did you say." And I just said, "Don't say shit to my kids ever again, and if you have something to say, you come tell me."
Q. And what, if anything, did the defendant, Craft, say at that point?
A. "What? What?" She just kept acting like she couldn't hear me.
Q. And what did you do then?
A. I just went in the house.
Q. And at that point was your entire family back inside, or was anyone still outside?
A. No, everybody was in the house.
Q. Where was Ms. Craft after your whole family was back in your house?
A. She stayed in front of our house. I don't know how long. I stood there for at least ten minutes. She was still standing there, and I just went and sat down.
Q. As she was standing there, what was she doing?
A. Just staring at the house.
Q. Did she still have her bike?

A. Yes.
Q. Connie, how did that make you feel?
A. Intimidated.
Q. Did your wife, Michella, have your-all's baby shortly after this?
A. Yes.
Q. And your child S.P.3[redacted] was born early?
A. Yes.
Q. I'd like to take you now to June 7th of 2020. On that morning, did you and Michella find a racial slur painted on your driveway?
A. Yes.
Q. Did you personally observe that?
A. Yes.
Q. I'd like to show you now Government's Exhibit 18 and just briefly scroll through those. Are these photographs of the painting that you found on your driveway on June 7th of 2020?
A. Yes.
Q. And what's written here?
A. Do I say the word?
Q. You can.
A. "Go away niggers."
Q. What was your reaction when you found this on the morning of June 7th?
A. Embarrassed, confused.

Q. Did you and Michella attempt to keep your children from seeing this?
A. Yes.
Q. Did you call the police?
A. Yes.
Q. And is that the Louisville Metro Police Department?
A. Yes.
Q. Did they come out?
A. Yes.
Q. When the officers from the police department came out on June 7th, where were they when you first saw them?
A. At Craft's house.
Q. Did you see Defendant Craft outside that day when you found this driveway painting?
A. Yes.
Q. Did you say anything to her?
A. Yes.
Q. What did you say?
A. "Did you do this?"
Q. Did she say anything to you?
A. No.
Q. Did you then work to clean up this painting?
A. Yes.
Q. Was it difficult?
A. Yes.

Q. How'd you get it off?
A. With the power washer. I mean, it's like it took -- like the color off, but you could still like see what it said because, like, that area was clean and the rest of the driveway was dirty. So you could still see the letters.
Q. You can kind of see it in this picture. But, Connie, is your driveway that kind of aggregate driveway where the top of the concrete is off, and it's that bumpy surface?
A. Yes.
Q. Does that make it hard to get paint off the driveway?
A. Yes.
Q. Now, at the time that this painting occurred, did you and your family have surveillance cameras on your house?
A. Yes.
Q. Are those Nest cameras?
A. Yes.
Q. Were they working?
A. No.
Q. Why not?
A. Because we didn't know you had to pay for a subscription for it to record.
Q. When did you realize you had to pay for that subscription?
A. When the police asked us to see the footage, we went in the house to show them and there's nothing there.
Q. So that was on June 7th, 2020?

A. Yes.
Q. After this driveway painting -- and we can take that down, please -- what did you do with those cameras?
A. I moved the one that -- originally it was on the garage, and then I moved it to the tree. And then when -- and ordered a subscription for it to be able to record.
Q. So then you said you moved it to a tree. Is that a tree that's between your property and your neighbor, Brian Recktenwald's?
A. Yes.
Q. And that has a better view of your driveway?
A. Yes.
Q. So I want to take you less than two weeks later to June 16th of 2020. On that date did you and your wife, Michella, find another racial slur painted in your driveway?
A. Yes.
Q. Did you personally observe that one?
A. Yes.
Q. I'm showing you Government Exhibit 19 briefly. This is another photograph of those paintings. And are these from June 16th of 2020, scrolling briefly?
A. Yes.
Q. And does this one say "no N-words" with a swastika underneath?
A. Yes.

Q. And your reaction to this?
A. Now I'm mad, very, very angry.
Q. Who did you --
A. Still confused but angry.
Q. I'm sorry. I --
A. Still confused but angry.
Q. Who did you think this was directed at, Connie?
A. My two older kids.
Q. And why did you think that?
A. Because they're mixed with Black.
Q. Did you and Michella once again attempt to keep all your children from seeing this?
A. Yes.
Q. Including your older children?
A. Yes.
Q. Did you call the police after you found the second driveway painting?
A. Yes.
Q. Now, after you discovered this one, did you review to see if your Nest camera system had captured any video related to this one?
A. Yes.
Q. Did you find that it did?
A. Yes.
Q. Do you remember the video that you captured?

A. Yes.

MS. ZIMDAHL: And we can take this down, please.

Q. What did that video show?

A. It showed Craft coming out of her garage and walking down to our driveway and painting it and then walking back to her house.

Q. Now, after you realized its significance, that you had captured video, did you save it?

A. Yes.

Q. And did you ultimately turn over that video, along with other relevant videos, to the FBI?

A. Yes.

Q. And just as you did with the last one, were you able to ultimately clean at least some of this off your driveway?

A. Yes.

Q. Did you power wash it once again?

A. Yes.

Q. Move forward again, this time 11 days later to June 27th of 2020, and that morning did you and Michella awake yet again to find another racial slur painted on your driveway?

A. Yes.

Q. I'm showing you Government Exhibit 21. Is this a photograph or series of photographs of the painting that you observed on your driveway on that date?

A. Yes.

Q. Was June 27th the day of the neighborhood yard sale in Lake

Forest?

A. Yes.

Q. Is that a day when a lot of people come into your neighborhood?

A. Yes.

Q. And does this one say "go N-words" once again with a swastika painted underneath, Connie?

A. Yes.

Q. What is your reaction to this one when it happened at the time?

A. Very angry, very, very angry.

Q. Now, given the day that this occurred, did your wife ask you to do something specific when this occurred?

A. Yes.

Q. And what did she ask you to do?

A. To move the truck over the words.

Q. Why did you do that?

A. So everybody that was -- kept coming through there would stop taking pictures and so the kids wouldn't see it.

Q. And you said people taking pictures. Were people gathering to look at this?

A. Yes.

Q. How did that make you feel?

A. Hurt really that the amount of people that kept either videoing or taking pictures wouldn't come let us know that

something horrible was on our driveway and then angry.

Q. And did you call the police about this one?

A. Yes.

Q. And, in fact, you called Louisville Metro Police Department after every single one of these driveway paintings; is that correct?

A. Yes.

Q. And they responded?

A. Yes.

Q. And for this one, did you again review your Nest camera system to see if it captured any footage?

A. Yes.

Q. And did it?

A. Yes.

Q. And did you review that?

A. Yes.

Q. And could you tell us what it found.

A. Same thing, Craft coming from her garage down the sidewalk and slowly walks up there, does -- paints on the driveway again and walks back to her garage.

Q. Did you save that?

A. Yes.

Q. Saved it to your computer?

A. Yes.

Q. And at the time that you had that and you called the police

to your home, did you provide that to the Louisville Metro Police Department?

A. Yes.

Q. And you provided the previous video to Louisville Metro Police Department?

A. Yes.

Q. And did you also provide this video to the FBI?

A. Yes.

Q. Along with all of the other Nest camera videos?

A. Yes.

Q. Now, how did you clean up this gold paint on your driveway?

A. At first I tried some paint thinner. I thought -- it says it removes paint. So I thought I would use paint thinner, but that didn't work. So a neighbor across the street had given me some stuff called Goo Gone, and I used that to take it off. And that worked pretty good.

Q. So that helped quite a bit?

A. Yeah.

Q. After all three of these, did you still have quite a bit of residue and issues with your driveway left behind from these paintings?

A. Yes.

Q. During the course of these events and with all of these racial slurs painted on your driveway, were you and Michella reaching out and trying to find ways to get help?

A. Yes.
Q. You mentioned that you called Louisville Metro Police, LMPD, after each of these events.
A. Yes.
Q. Did those calls result in a stop to the driveway paintings and the harassment of your family?
A. No.
Q. Did you also contact your homeowners association, the Lake Forest homeowners association for help?
A. Yes.
Q. Did that in any way result in a stop to the painting on your driveway and the harassment?
A. No.
Q. Did you post about what was happening to Facebook?
A. Yes, after the third time.
Q. Why did you do that?
A. We didn't know what else to do. We couldn't get help from anybody. So we thought, if we posted it, the police department would get some heat and they would help us.
Q. Were you frustrated?
A. Very frustrated.
Q. Were you upset?
A. Yes.
Q. Were you angry that nobody was helping your family?
A. Yes.

Q. At some point after the three times your driveway was painted, did you connect with a civil attorney?
A. Yes.
Q. How did that happen?
A. She responded to one of our posts saying something like, "I can help you. If we can't hold her accountable legally, then maybe we can hold her accountable civilly."
Q. And so in July 2020, through that civil attorney, did your family file a civil lawsuit against Defendant Craft and the Lake Forest homeowners association?
A. Yes.
Q. What was your reason for filing that civil lawsuit?
A. Just to get her to stop. We thought that would get her to stop. She thought maybe an attorney would get her to, you know, leave us alone, that she would stop.
Q. And did that lawsuit seek an injunction?
A. Yes.
Q. And did it also seek monetary damages?
A. Yes. It didn't really talk about it.
Q. But that was part of the lawsuit; correct?
A. Yeah.
Q. Yeah. Did you think you would be able to get significant money from that lawsuit?
A. No. It wasn't about the money. I didn't care if we got a penny from her.

Q. During the time that you knew her, what did you think that Ms. Craft's employment was?
A. I didn't really know much about her except she was a -- I don't know -- a bartender or waitress, something like that.
Q. Did you think that she had financial means?
A. Didn't know if she did or not.
Q. What did you want as a resolution to that lawsuit?
A. Just for her to leave us alone.
Q. Did it work?
A. No.
Q. I want to turn your attention now to the fall of 2020, after the time you filed that moving forward, November 2020. Did you find two letters in your yard?
A. Yes.
Q. I want to talk about how that came to be. So could you please tell the members of the jury how you found two letters in your yard.
A. I was blowing leaves from underneath the rocks and the water fountain that we have there and noticed a bag of something. That's when I picked it up. Michella was on the lawn mower. So I took it to her, and that's when she opened it and read it.
MS. ZIMDAHL: Could we put up Government Exhibit 16, please.
Q. And you can touch the screen and circle for us, if you would. About where did you find --

[Witness indicating.]

Q. So right there, kind of in that fountain area, near the rock?

A. Yeah.

Q. That general area? And it was in a bag?

A. Yes.

Q. Was it like a ziplock bag or --

A. Yes.

Q. -- am I describing that right?

A. Yes.

Q. Did you find another letter in your yard around the same time?

A. Yes.

Q. And was that in the same or different location?

A. Same spot.

Q. So kind of in this area here? Am I -- I want to make sure I'm describing this properly.

A. Yes.

MS. ZIMDAHL: Okay. So if the record would just reflect that the witness has identified the area near the fountain and the rock in her front yard.

THE COURT: I think the record properly reflects that, yes.

MS. ZIMDAHL: Thank you.

BY MS. ZIMDAHL:

Q. So you found a total of two letters in your yard?
A. Yes.
Q. Did those letters that you found share similar characteristics?
A. Yes.
Q. And what are those characteristics?
A. They were threatening, and they had the cutout -- cutout pieces of paper.
MS. ZIMDAHL: If we could please put up Government Exhibit 11A just for the witness and just scroll through that quickly.
And then 12A just for the witness, please.
Q. Connie, are these the two letters that you found in your yard?
A. Yes.
MS. ZIMDAHL: All right. I'd like to put these up, please. If we could start with Government Exhibit 11A for the jury and go with page 4.
Q. Connie, is this one of the letters that you found in your yard by the fountain?
A. Yes.
Q. Did you open this with your wife, Michella?
A. Yes.
Q. And what does this letter say?
A. "You had enough nigger bitch."

MS. ZIMDAHL: And if we could please put up Government Exhibit 12A, page 4.

Q. Is this one of the other letters you found in your yard?

A. Yes.

Q. Does this one say "Die stupid bitch, move out"?

A. Yes.

Q. Connie, who did you think these were directed at when you found them?

A. My wife.

Q. Why did you think that?

A. I just figured because she's the bio mom of the kids.

MS. ZIMDAHL: If we could please put up Government Exhibit 12B. And this is part of that threat I just read. If we could go to pages 5 and 6.

Q. Included with that threat, the one that says "die stupid," did that also include -- back one page -- a piece of pasta box?

A. Yes.

Q. Barilla pasta box?

A. Yes.

Q. On the back of that, if we could go forward a page, did that also include the words "die bitch" in cutout letters?

A. Yes.

Q. Who did you think that was directed at?

A. My wife.

MS. ZIMDAHL: You can take that down.

Q. After you found these, did you and Michella go back and review your Nest cameras to see if you had any footage that might shed light on how they got there?

A. Yes.

Q. And do your cameras save videos for a certain period of time?

A. Yes.

Q. So were you able to find some footage of someone putting something in your yard near the fountain?

A. Yes.

Q. Were some of those videos from October 18th, 2020?

A. Yes.

Q. And did you also find another relevant video from November 1st, 2020?

A. Yes.

Q. And do your videos save, you know, screenshots like -- that would save the front of those videos that have dates on them and times?

A. I'm sorry?

Q. Do you have -- when those videos save, they capture the dates?

A. Yes.

Q. And so I'd like to now start going through those videos, and I'd like to start with the October 18th, 2020, video. And I'd ask you just to follow along.

MS. ZIMDAHL: And I'd ask if we just now play for everyone Government Exhibits 23B, C, and D, and just play those in succession.

(Government playing videos.)

Q. The videos that we just watched, are those the videos that you and Michella found when you reviewed the Nest camera video after you found the letters in your yard?

A. Yes.

Q. And those are all from October 18th of 2020?

A. Yes.

Q. In that video, do we see a person approaching your yard from Defendant Craft's house?

A. Yes.

MS. ZIMDAHL: And if we can just put up 23B. Don't play it. Just put it up.

Q. Does the person on the video appear to be coming from Ms. Craft's house?

A. Yes.

Q. In the area where we saw in that video that the person did something, dropped an item, that area, is that where you found the letters?

A. Yes.

Q. And, Connie, you personally found the letters?

A. Yes.

Q. And so having observed this video, the video you found, and

knowing where you found the letters, those areas are the same?
A. Yes.
Q. Towards the end of the video, what did we see the individual do who had just dropped something by your fountain?
A. Yes.
Q. What did we see that person do in the video?
A. She dropped the letter by the rock, in between the rock and the water fountain.
Q. And then what did that person do next?
A. Oh, then she went back to her house. She's fiddling around with I don't know what, gets in her car and leaves.
Q. And did you recognize the vehicle in the video?
A. Yes.
Q. How so?
A. It's the same white Lexus with the same brakes that make that sound, that whistling sound.
Q. Had you previously seen Defendant Craft drive that vehicle?
A. Yes.
Q. You previously heard it?
A. Yes.
Q. I'd like to now move to the second video you found, the first set of videos being from October that we just addressed. I'd like to move to the other one you found on November 1st, 2020. And is that the early morning hours after Halloween?
A. Yes.

MS. ZIMDAHL: If we could now play Government Exhibit 24B, and I'd just ask you to watch along while we play it.

(Government playing video.)

Q. Is this the -- one of the videos that you found when you and Michella went to review your Nest camera video after finding the letters in your yard?

A. Yes.

Q. And what do we see here on this video?

A. Craft drop a letter behind the rock and then walk back to her garage.

Q. And, again, that area where the item is dropped, is that where you found the other one of the letters?

A. Yes.

Q. Now, after you found these Nest videos and realized their significance, did you save these videos?

A. Yes.

Q. Other than titling them so that you could save them, did you alter these videos in any way?

A. No.

Q. Did you subsequently provide these videos to law enforcement?

A. Yes.

Q. Did you provide them to the FBI?

A. Yes.

MS. ZIMDAHL: We can take this down. Thank you.

Q. So around the same time that you found these letters in the yard, were you and your family also receiving threatening mailings?

A. Yes.

Q. Letters that came to you through the mail instead of your yard?

A. Yes.

Q. Did those mailed letters share similar characteristics to the threatening letters that you found in your yard?

A. Yes.

Q. Can you describe what some of those similar characteristics are?

A. Threatening, racist, and the same cutout letters.

Q. When those letters came into your home, did you and your wife look at them together sometimes?

A. Yes.

Q. Did Michella show them to you?

A. Yes.

MS. ZIMDAHL: I'd like to look at a few of them with you now, and we'll try to go through them briefly here.

If we could start with Government Exhibit 5A and start with the first page, please.

Q. Who is this mailing addressed to?

A. My wife.

Q. And is there anything off about your wife's name here?
A. Her name's not spelled right.
Q. Your wife's name is not Michelle?
A. No.
Q. Is that your address?
A. Yes.
Q. And this letter was mailed?
A. I'm sorry?
Q. And this was a mailed letter?
A. Yes.
Q. As we see there.

MS. ZIMDAHL: Can we go to the seventh page, please.

Q. Connie, have you seen this threat before?
A. Yes.
Q. At some point after it arrived at your home?
A. Yes.
Q. And did you discuss this with Michella?
A. Yes.
Q. And I'll just read it. Does it say "N-words leave. We hate your kind. Last chance"?
A. Yes.
Q. What did you think when you read this and you saw it at your home?
A. I'm sorry?
Q. What did you think when you saw this come into your home?

A. Somebody doesn't like our kids.

MS. ZIMDAHL: Can we go to page 4, please.

Q. When this particular letter -- when you-all saw this, did you see this scribbled out text on this particular piece of mailing?

A. Yes.

Q. And did you and Michella try to figure out what was underneath this scribbled out text?

A. Yes.

Q. Were you curious?

A. Yes.

Q. Were you trying to make out what was underneath that?

A. Yes.

Q. Were you able to figure it out?

A. No.

Q. Did you try?

A. Yes, we tried. We put it up to the light. The kids said that you can look on TikTok how to do it, but --

Q. And you at that time had the actual physical envelope; correct?

A. Yes.

Q. Not just a picture of it?

A. No, we had the envelope.

Q. And you couldn't see through -- figure out what that actually had underneath?

A. No.

MS. ZIMDAHL: Let's move on to Government Exhibit 7A, please.

Q. And who is this directed to, the address line?

A. Who's it addressed to?

Q. Addressed to?

A. My wife.

Q. That's a bad question. And, again, misspelling of your wife's name?

A. Yes.

Q. And is that your address?

A. Yes.

Q. And the return address, does that say "N-let Destroyer" there?

A. Yes.

MS. ZIMDAHL: Can we go to the tenth page, please, of this exhibit.

Q. There was a piece of pasta box in this envelope; is that correct?

A. Yes.

Q. And what kind of pasta does this look to be from? I know it's upside down, but if we can orient ourselves a little bit.

A. Barilla.

Q. And I know just a moment ago we were looking at one of the threats that you had found in the yard. Did that also have a

piece of pasta box in it?

A. Yes.

MS. ZIMDAHL: If we could back up one page to page 9.

Q. Have you seen what was on the back of this pasta box before?

A. I'm sorry? What did you say?

Q. Have you seen what was glued to the back of the pasta box before, this threat?

A. Yes.

Q. At some point after it arrived at your home, did you discuss this with Michella?

A. Yes.

Q. And I'll read it. Did it say "two dead N-lets"?

A. Yes.

Q. Did you take this as a threat against your family?

A. Absolutely.

Q. And who did you think this was directed at?

A. My two older kids.

Q. Did you take it seriously?

A. Absolutely.

Q. Did you take steps to try to protect your family when you saw this?

A. Yes.

Q. How did you feel when you saw this threat?

A. Scared, very scared.

MS. ZIMDAHL: If we could move on, please, to

Government's Exhibit 8A.

Q. Who is this particular mailing addressed to?

A. My wife.

Q. Again with the misspelling of her name?

A. Yes.

Q. And even though there is that misspelling, did you generally know, given the address and the close similarity, who it was directed to?

A. Yes.

Q. But definitely not a correct spelling of your wife's name; is that right?

A. No, it's not right.

Q. And is this the same return address we've seen before?

A. Yes.

MS. ZIMDAHL: And I'll say it, "N-let Destroyer."

Can we go to the fourth page, please, and one more forward.

Q. Have you seen this threat before?

A. Yes.

Q. Discussed it with Michella?

A. Yes.

Q. And does this one say "You will die, bitch"?

A. Yes.

Q. What did you take those words to mean?

A. That somebody's gonna kill my wife.

Q. Did you take this threat seriously?

A. Yes.

Q. How did you feel when you saw this threat at your home?

A. Very scared, very scared.

MS. ZIMDAHL: If we could go now to Government Exhibit 6A, please.

Q. Is this, again, addressed to Michelle Pineda?

A. Yes.

Q. And with that same return address we've seen before?

A. Yes.

Q. If we can go to the fourth page, please. Have you seen this threat before?

A. Yes.

Q. And what does this one say?

A. I'm sorry? What did you say?

Q. What does this one say?

A. "Move out or bullets."

Q. Connie, what did you think when you read this?

A. The threats are getting more serious.

Q. Did you take it seriously?

A. Yes.

Q. Now, in addition to receiving threatening letters in the mail and your yard, did your family then also receive a package containing bullets?

A. Yes.

Q. Were you physically there the day that Michella found those

bullets?
A. Yes.
Q. Where were you when they were found?
A. On the side of the house between my house and Mr. Brian's house.
Q. And when you say "Mr. Brian," is that Brian Recktenwald?
A. Yes.
Q. Does he live in the yellow house next door to you?
A. Yes.
Q. What were you doing when Michella found those?
A. We were moving red bricks to his backyard.
Q. I'd like you to take a look at Government Exhibit 10A, and let's scroll through those. Are these pictures of the envelope that you saw your wife, Michella, find?
A. Yes.
Q. You've seen this before?
A. Yes.
MS. ZIMDAHL: Can we go back to the first page, please.
Q. Who is this addressed to?
A. My wife.
Q. And did you and Brian Recktenwald observe Michella open this envelope?
A. Yes.
Q. And turning to page 7, please, do you remember these two

bullets being in this envelope?
A. Yes.
Q. And just so I'm perfectly clear, there were two physical bullets in the envelope, not a picture?
A. Two physical bullets.
Q. And what did you-all discuss when you found two physical bullets, the three of you that were outside?
A. Mr. Brian said, "Put them away. They might be live. Just put them away. Don't touch them." So we put them in the bag where the other letters were.
MS. ZIMDAHL: And if we could just back up to page 8, please. I'm sorry. I should have said 10B, page 8. I apologize. I'm giving poor directions.
Q. This note "get out," was that there with those bullets?
A. Yes.
Q. So you said you took this because you were worried about them and put it in the bag with the bullets. You put this mailing with the bullets in a bag, and you added it to the letters. Where were you storing everything?
A. I'm sorry? What's the last thing you said?
Q. Where were you storing everything? You said you added this to the other letters. Where did you store them?
A. In a ziplock bag in the freezer.
Q. And why were you storing them in a freezer?
A. We didn't want the kids to see them. So we put them in the

freezer that there was only raw meat because they wouldn't go there to look for food.

Q. And how did you feel after you received this envelope?

A. Scared, intimidated, confused on why somebody would want to kill my wife and kids just because of their skin color.

Q. So now you've said you were storing everything in the freezer to keep it away -- make sure your children couldn't find them. Did you and Michella ultimately take all of those items that you were storing, all the ones that you've received, whether by the mail or in the yard, and turn those over to an LMPD detective?

A. Yes.

Q. You met with him to turn them over?

A. Yes.

Q. And did you later find one more letter and turn that over to FBI Task Force Officer Kristen Downs?

A. Yes.

Q. We've touched on this quite a bit, but I want to just clarify. Did you take all of these events, receiving these threatening mailings, seriously?

A. Absolutely.

Q. Were you afraid?

A. Yes.

Q. Were you scared for your children?

A. Yes.

Q. And how has that impacted your family?

A. My kids have become glued to their rooms. They're like frozen in time, like they're still that 14- and 11- and 8-year-old kids. My older kid should be going to the movies, going bowling, getting their license. My oldest daughter's given up her dream of playing softball.

My wife and I used to have such a strong foundation, and over time it has just ruined our marriage, which we're adults. We will get past it. It's my kids I'm worried about. And I'm hoping over time we can pick up the pieces and get our family back where it was before we moved to [redacted].

MS. ZIMDAHL: Your Honor, I have no further questions.

THE COURT: Members of the jury, we're going to take our morning break now. Remember the admonition not to discuss the case amongst yourselves or with anyone else. We'll be back in about 12-15 minutes.

(Jury out 10:24 a.m.)

THE COURT: You may be seated. The jury has left the courtroom.

Although you would not want to talk with your witness before she is subjected to cross-examination, if you need to let Ms. Pineda also step down and take a break --

MS. ZIMDAHL: Thank you, Your Honor.

THE COURT: -- that would be appropriate.

Do we need to take up anything during the break?

MS. REA: No, Your Honor.

MR. TIEKE: No, Your Honor.

THE COURT: I do expect, upon return from the break, I will have the draft instructions that I mentioned to you.

MS. ZIMDAHL: Thank you, Your Honor.

MS. REA: Thank you, Your Honor.

(Recess at 10:25 a.m. until 11:35 a.m. Jury out.)

THE COURT: Well, that was a slightly longer break than anticipated. I should not have bragged to the jury this morning that we were doing so well. You now have received the draft instructions; is that correct?

MR. TIEKE: Yes, Your Honor.

MS. REA: Yes, Your Honor.

THE COURT: We had a couple of technical difficulties in producing that batch, had to call the IT folks up to chambers to help us with that. So that's why we had a delay.

We will -- as a result of that, we will have our lunch break a little later than anticipated. I think, unless your cross goes particularly long, we'll probably want to take the next witness because you-all had indicated it would be briefer than predicted in the filing; correct?

MR. TIEKE: Yes, Your Honor.

THE COURT: So we'll try and move along, make up a little bit of the lost time, if possible, and have our lunch break a little later.

After you-all have had an opportunity to review the draft, then we can talk about when we want to schedule a discovery conference.

All right. Anything else we need to talk about before we bring the jury in?

MR. TIEKE: No, Your Honor.

THE COURT: You want to have the witness retake the stand first.

MR. TIEKE: Yes, Your Honor.

MS. ZIMDAHL: Yes.

(Jury in 11:40 a.m.)

THE COURT: Members of the jury, I apologize for the unexpected delay. It was a result of some equipment difficulties. You know how it is. You have to call in IT from time to time when things don't work right, and that's what we had to do during the break. A task that we thought would only take a few minutes took much longer as a result. You can attribute the delay to me and not to the parties, but we are now ready to proceed. We will probably take our lunch break a little later today than we did yesterday as a result of the delay.

Ms. Rea.

MS. REA: Thank you, Your Honor.

CROSS-EXAMINATION

BY MS. REA:

Q. Good morning, Ms. Pineda. My name is Angela. I have a few questions for you. If I ask something poorly or in a way that's confusing, please just tell me.

After you and your family moved into the Lake Forest subdivision in April 2019, shortly thereafter you met Ms. Craft; correct?

A. Correct.

Q. Okay.

A. Yes.

Q. I'll also -- I was gonna ask you to keep your voice up. And you also met her daughter, S.W.[redacted]?

A. Not, like, "Hey, this is S.W.[redacted]," but, yeah, I seen her.

Q. Okay. Was she with Ms. Craft when Ms. Craft came over?

A. Yes.

Q. Okay. And thereafter, for a period of time, the relationship was something you described as cordial?

A. Yes.

Q. That included exchanging messages?

A. Yes.

Q. And some of those messages were from your wife, Michella; right?

A. Yes.

Q. And some of those messages were from you?

A. Yes.

Q. And were there times when you would send messages to

Ms. Craft that were from Michella or from her point of view?
A. Yes.
Q. Okay. We've also heard you testify about her name and been shown the letters and the way that those were addressed. Did anyone call your wife Michelle?
A. Anyone -- like anyone in the world or --
Q. Anyone you knew.
A. Anyone that I knew? Probably.
Q. Okay. Was it something that from time to time happened, that people would call her Michelle?
A. They would because she wouldn't correct them. She's too shy.
Q. Okay. Did you ever refer to her in that fashion to other people, not to her?
A. No.
Q. Okay. When you were testifying earlier today, you were asked questions about moving items out of the basement. Do you recall that?
A. Yes.
Q. And among those items that you moved out of the basement, you said, and put on the curb, did you say there was paint?
A. Yes.
Q. Okay. Was your first conversation with the FBI about paint and moving paint out of the basement -- did that take place, that conversation, in the last few weeks?

A. I really don't know the date it started.
Q. No, I'm not -- I'm not giving you a what date. Was it more recent that they asked you about that?
A. Yes.
Q. Okay. Since you have moved into the house at 510, you have built or have had built a fence around your property; right?
A. Yes.
Q. And that wasn't built all at one go, was it?
A. You mean like in one day?
Q. No, at one time. Was it built in stages?
A. I don't understand your question.
Q. Did you build part of the fence and then did you later decide to extend the fence?
A. I don't -- I don't really know.
Q. Okay.
A. I just remember building the fence. I don't remember a conversation about how big or how -- I mean, I don't know.
Q. Okay. So you don't recall if you built part of it and then decided you were gonna build more of that fence?
A. No. I remember building a lot of it. I mean, I just remember building the fence from one end to the other.
Q. Okay. But that fence, whenever it was built, was not there at the time that you moved in?
A. No.
Q. It was built later in time?

A. Yeah.
Q. Okay. You have talked through with us a time in March of 2020 when there was a confrontation involving Ms. Craft; right?
A. Right.
Q. And you recall that that occurred on March 22 of 2020.
A. Yes.
Q. Okay. Was there a time shortly thereafter where S.W. again tried to play with your children?
A. I don't think so, but I don't remember.
Q. Okay. Not that you were -- not that you know of right now?
A. No.
Q. Okay. Did you communicate with the HOA about this event involving Ms. Craft?
A. About the fight?
Q. Yes, ma'am.
A. Not about the fight, I don't think so.
Q. Okay. If I were to show you an email exchange -- well, first of all, do you know who Maggie Warner Smith is?
A. Yes.
Q. Who is she?
A. She works for -- in the HOA building.
MS. REA: Okay. And I'd like to just share my screen with the witness, please.
Q. I'm gonna show you an email. Tell me when you can see it. Can you see it?

A. Oh, yeah, I remember that.
Q. Okay. And I want you to be able to read it all. So I wanted to wait. So, first of all, is this an email exchange that took place -- I'm looking at 3311. Is this an email exchange that took place between you and between Maggie? Just to orient you, I scrolled to the bottom to get to the earliest message.
A. Okay. Yeah.
Q. Okay. And was this the same message that was sent on March 25th, 2020?
A. What was the question?
Q. Is this a message that you -- a message or a series of messages that took place on March 25th of 2020?
A. Yeah, that's what it says.
Q. Okay. Reading these messages, is this an exchange that is about an altercation with Ms. Craft?
A. Yes.
Q. Okay. Is there any other altercation with Ms. Craft that took place close in time that this email exchange could be discussing?
A. I don't think so.
Q. And in this exchange, what you describe to Maggie was that you got into -- or excuse me -- that Michelle and you got into it with her; correct?
A. Correct.

Q. And you used the name "Michelle"?
A. That's autocorrect on your phone.
Q. But that's what the email says?
A. Yeah.
Q. It says "Michelle"?
A. Uh-huh.
Q. And you also told Maggie, "You would have loved to have been there."
A. I told Maggie that? Yeah, I said that.
Q. Yes, ma'am. Okay. Maggie did respond to you, and she used the name "Michelle" as well, didn't she, in her response?
A. Yes, she did.
Q. Okay. You then responded to Maggie's message; right?
A. Yes.
Q. Okay. Same day but it looks like later that day. Do you see that?

Okay. Your description of the event is "Her daughter asked my oldest daughter if she could play with her." Did you write that?

A. I must have. That's what it says.
Q. Okay. Your oldest daughter is K.P.; right?
A. Yeah, but she wouldn't have asked my older daughter.
Q. Okay. But that's what --
A. Yeah, I know that's what it says but --
Q. Okay. And you write that your oldest daughter said no

"because you are disrespectful to my parents and mean to my younger sister." Correct?

A. Correct.

Q. Then you write -- and I just want to -- I don't want to leave anything out. "So she went and told her mom." The next thing that you write is "So crazy decides to come over banging on our door." Right?

A. Uh-huh.

Q. "And throwing the 'F' bomb around." And you say that "We went off in her." That's probably a typo. On her; right? Then you write, "Man, did that feel good." Right?

A. Yes.

Q. Okay. And you wrote "been wanting to do that for a year now."

A. Yes.

Q. Then you respond that the kids are good; right?

A. Uh-huh.

Q. And then the rest of it is about a doctor's appointment and that the baby is going to be born early, and you're going to the doctor; correct?

A. Yes.

Q. Okay. In that email exchange between you and Maggie of the HOA, there is no mention of use of racial slurs; right? I didn't mean to take it down. I'm perfectly glad to still have you look at it. There is no mention of racial slurs; correct?

A. Correct.

Q. There is no mention of threats to run over S.P.2; correct?

A. Correct.

MS. REA: Okay. Now we can take that down, please. Thank you.

Q. After the mailings -- and when I say "mailings," I mean the items received, whether in the mailbox or whether found in the yard -- after those things were in your possession, there were posts about them that were placed on the Facebook page; correct?

A. Correct.

Q. And do you remember the date -- me and technology -- the date that you posted -- first posted information about those mailings?

A. No.

MS. REA: Okay. If I can share my screen just with the witness again.

Q. Did you post about those -- can you see that? I can scroll up or down. I want to give you a chance to look at it. You posted about receiving those on November the 6th, 2020; correct?

A. That's what it says.

Q. So at that point, on November 6th, 2020, you had in your possession threatening letters, and you said that they had been found outside; right?

A. Yes.

Q. Okay. I'm gonna scroll down. You posted again later that

day about mailings. Do you see that?

A. Okay.

Q. And that was also on November the 6th but in the evening at 5:09 p.m. Do you see when that post was made?

A. Yes.

Q. In that post, did you also state that you received two bullets in the mail?

A. Yes.

Q. With a threatening letter?

A. Yes.

Q. Okay. And you went on to say "three or four threatening letters that we now have." Right?

A. Right.

Q. And that -- that information was shared on Facebook, again, all of that on November 6th?

A. Yeah, that's what it says.

Q. Okay. The last questions I'm gonna ask you are about what was posted subsequent to that. So subsequent to that, did you produce another Facebook post that featured photos of the mailings?

A. If it's there, then, yeah, that's what I did.

Q. Do you remember when you made that post?

A. No.

Q. Okay. Does taking a look at the Facebook page refresh your recollection of when that post was made? Was that post made on

November the 11th, 2020?

A. Yeah, that's what it says.

Q. Okay. And that post on the Facebook page included video from Nest cameras; right?

A. Yes.

Q. Okay. It also included photographs of, it looks like, four -- no, excuse me -- four items that you had received; right?

A. I don't know, ma'am.

Q. Okay. You're looking at the photos, and those are the photos that were posted on your Facebook page on 11-11; right?

A. All I know is what I'm looking at. I don't remember what happened that day.

Q. But you agree that you created the post?

A. Yes.

Q. Okay. That's -- I'm asking you about what is in it, not the -- what you did outside of what is on this page that we see.

A. Okay.

Q. So one of the items that you posted a photo of is the item that says "N-word leave. We hate your kind. Last chance." Right? I can make it bigger.

A. Are you telling me it's on the screen, or are you telling me what it says? Oh, there it is.

Q. Yeah.

A. Okay. Yeah.

Q. So that was one of the photos posted?
A. Yes.
Q. Okay. And then, also, a photo posted was of the envelope with the scribbled out stuff on it; right?
A. Right.
Q. Okay. I'm just gonna talk through the three other things, and it really is just what's on the page. Another item that was posted on that day was material that said, "You had enough NB"; right?
A. Yes.
Q. Okay. And then another item posted on that day says, "Die stupid B. Move out." See that?
A. Yes, I see.
Q. The last photo that was posted -- I'm gonna scroll. It's not to make you dizzy. It's to make sure I haven't missed anything. The last photo that was posted on 11-11 is a photo which depicts the item with the bullets; right?
A. Yes.
Q. And in that photo, you can also see the gloves, and you can see a -- what I will call a business envelope. Do you see that?
A. A what?
Q. I didn't hear you.
A. What was the last thing you said?
Q. It also contained -- that photo also contains the gloves; right?

A. Yes.

Q. And it also contains what I called a business envelope. It's what they're laying on.

A. I'm not understanding that last one.

Q. That's okay. The gloves and the bullets are laying on an envelope in that photo.

A. Right.

Q. With printing on it.

A. Okay.

Q. Do you agree with that?

A. That it's laying on an envelope with print?

Q. Yes, ma'am.

A. Okay. Yeah.

Q. Okay. And those are photos that were posted at that time?

A. Yes.

MS. REA: Okay. That may be all I have for you. Let me -- Ms. Pineda, I don't have any other questions for you. Thank you.

THE WITNESS: Thank you.

THE COURT: Ms. Zimdahl, any redirect?

MS. ZIMDAHL: Yes, Your Honor. May I approach?

THE COURT: Yes.

(Bench conference on the record.)

MS. ZIMDAHL: Your Honor, I think the cross-examination raises a potential issue because that HOA email

talks about, you know, "We've been wanting to do this for a year." And the reason that is was because there were many instances of harassment by Ms. Craft toward this family, and those are a lot of those instances we were trying to avoid raising.

There's a lot of other things that were done by Ms. Craft to this family, and we tried very hard not to bring those up. Unfortunately, I think this now makes it look potentially like we're leaving something out.

I would propose asking a simple question, which is were there many other instances of things Ms. Craft had done to your family that you were upset about and leaving it at that. Without asking that question, though, I think it's potentially confusing why she says that in this email.

MS. REA: And, Your Honor, I think the jury has heard about what the Pinedas have described as a pretty eventful thing that kicked off the bad feelings with the prior racial slur that they have said that S.W. W[redacted] uttered. I don't think we need further explanation on that. So I would object to that question.

If the Court finds otherwise, I do think a quick ask it and be done with it is the best way, but I don't think we have opened the door to a whole slew of things -- any slew of things.

THE COURT: Is the email in evidence?

MS. REA: I just crossed her about it. I didn't

introduce it.

MS. ZIMDAHL: She did, but she essentially read through it. And it makes it sound as if she's itching for this fight because of one thing when, in fact, there are many things that have happened to her family other than just the thing that was said. I mean, there are all kinds of things that were done.

THE COURT: But she didn't -- you didn't ask a question about over the -- that developed that portion of the email, did you?

MS. REA: I didn't.

MS. ZIMDAHL: She read it.

MS. REA: I read it because I wanted it to be fair and not cherry-pick the email so -- but I didn't ask a question about it.

MS. ZIMDAHL: But she read it. And so it makes it sound as if --

THE COURT: Right, yeah, but I think you're gonna -- you're gonna add much more attention to it with a follow-up question and an explanatory -- or an instruction.

Since it's not in evidence, I don't know that it -- it didn't get emphasized. From where I sit, it wasn't disembodied from the rest of the email in such a way as to emphasize it, I guess. So I'm hesitant to do anything about it. What exactly would you ask on redirect?

MS. ZIMDAHL: So I would just like to ask, "Were you

upset about what had happened? And were you upset about other instances that had happened over the last year between Craft which were directed toward your family?"

THE COURT: Yeah, I would be concerned about confusing the jury at that point because we're not going to get into those; right?

MS. ZIMDAHL: No, I think we had intended not to.

THE COURT: I understand that. And so there is a small amount of potential confusion about that phrase in the email, but I think that that confusion is compounded if you simply say, "Were there other incidents?" Then the jury is left wondering why. "Why aren't we hearing about those? Are those being hidden from us?" So I think that the better course is to move on.

Now, if the email is to be admitted, that's a different thing.

MS. ZIMDAHL: Sure.

THE COURT: The jury's not gonna have that back in chambers so -- or back in the deliberation room. So I don't think it's going to be an ongoing source of confusion.

MS. ZIMDAHL: Again, Your Honor, my concern is that, you know, Ms. Rea picks up on that she's not bringing up this racial piece. And I think part of that is the HOA's aware of it because of those prior incidents. It's already been brought to their attention. They're aware of a prior incident with the

daughter. They're aware of what's -- this litany of events; and so it doesn't need to be necessarily said. And leaving that out makes it look like this witness is leaving out facts from prior statements when that's not the course of conduct that's happened.

MS. REA: I would just say I don't think anything I have been given with the HOA -- as of March 2020, there is indication that they have been -- the 2019 --

THE COURT: I didn't hear that last part.

MS. REA: I will say, from the information that I have about the HOA, I don't think there is indication that they have been given information about allegations of racial slurs in 2019. We can look at it, if you think it's there, but I don't -- I don't think they were alerted to that particular issue.

MS. ZIMDAHL: And I don't want to misspeak, if I'm mistaken, that they are certainly aware of this sort of litany of other events and issues.

MS. REA: They're aware of --

THE COURT: Yeah.

MS. ZIMDAHL: And if that's your ruling, that's fine, Your Honor. I'll stay away from that particular line of questioning.

THE COURT: I didn't hear that.

MS. ZIMDAHL: I said, if that's your ruling, I'll stay

away from that line of questioning, Your Honor.

THE COURT: I don't think that it's necessary. I understand that it's there, but it's -- the email is not admitted into evidence. There wasn't much development of that line of questioning.

I think, if Ms. Rea had asked a series of questions or just a follow-up question that developed that time period, I would allow you to get into it. But I think here the jury has heard to this point a substantial amount of evidence about the uncharged conduct, the res gestae here, and I don't think this has a potential for confusion. But I do think a follow-up question that highlights conduct that will not be developed is potentially more confusing. So let's just move on.

MS. ZIMDAHL: Thank you, Your Honor.

(End of bench conference.)

REDIRECT EXAMINATION

BY MS. ZIMDAHL:

Q. I just have a few questions, just a few follow-up questions for you. I promise I'll be brief. You talked to Ms. Rea about an email that you sent Maggie at the Lake Forest homeowners association.

A. Yes.

Q. And were you in frequent communication with her or from time to time as things arose in the neighborhood?

A. Yes.

Q. And related to moving into your new home?
A. I don't understand the question.
Q. Were you in communication with her or others at the homeowners association as things arose with your new home, moving into the neighborhood?
A. Like did I contact her, like, when we first moved in?
Q. Yeah. If you needed something as it related to moving into your house or putting up a fence, anything that might happen with your house?
A. Yeah, yeah.
Q. And when you were emailing with her about this particular incident that occurred in March and you were relating some of the things that occurred -- for example, you didn't hear what Ms. Craft said when she was banging on your door; is that correct?
A. That's correct.
Q. So some of the things you were relating you hadn't heard firsthand; correct?
A. No, I haven't heard it yet.
Q. And was your report to Maggie that day meant to be a full report of everything that had happened?
A. No.
Q. Just a summary of some events at your house?
A. Just a short version.
Q. And you also talked to Ms. Rea about posting some things on

your Facebook page.

A. Yes.

Q. During the events that occurred in this case, did you and Michella post things to Facebook from time to time?

A. Yes.

Q. And would you sometimes post copies of and pictures of the letters that you received?

A. Yes.

Q. Did you post those at various times after you received them?

A. Yes.

Q. Would you post them in groups, maybe a couple of them or several of them at a time?

A. Yes.

Q. After you found them?

A. Yes.

Q. And did you also sometimes post videos that you found of the person who was doing this to you?

A. Yes.

Q. And why did you post those items on Facebook?

A. We didn't know what else to do. We couldn't get any help. We called the cops three times. Nobody was helping us. So we thought, if we posted it on social media, that they would put fire under the police station to help us get this to stop.

MS. ZIMDAHL: I have no further questions.

MS. REA: Nothing else, Your Honor.

THE COURT: May the witness be excused?

MS. ZIMDAHL: Yes, Your Honor, please. Thank you.

THE COURT: Thank you. You may step down.

MS. REA: Your Honor, may we approach?

THE COURT: Yes.

(Bench conference on the record.)

MS. REA: I know it's soon, but Ms. Craft said she needs a restroom break. I think she was out here a lot during the last break. So she has said she needs a break.

THE COURT: Okay.

MS. REA: Thank you.

THE COURT: Are you -- what's your preference here? Is it to go forward and try and get the witness in and then take a lunch break at --

MR. TIEKE: I would just take the lunch, and we'll see if we can expedite things this afternoon, Your Honor.

THE COURT: You want to just go ahead and take lunch now?

MR. TIEKE: Take lunch now, and then we'll just come back and try to do as many as we can this afternoon.

THE COURT: Okay. All right.

MR. TIEKE: I'll defer to you, but I think --

THE COURT: No.

MR. TIEKE: -- that's the best course.

THE COURT: My hesitation is based upon my frustration

with our IT equipment that led to the delay in getting you-all the draft instructions.

MR. TIEKE: We'll do our best to move as quickly as possible this afternoon.

THE COURT: Yeah. Well, that problem is not yours. I'm just trying to manage it now going forward. That's fine. We'll just do that.

MR. TIEKE: Yes, sir.

MS. REA: Thank you, Your Honor.

(End of bench conference.)

THE COURT: Well, members of the jury, when I said earlier we would likely start our lunch break late, I think now, after conferring briefly with counsel, it's probably best that we go ahead and take our lunch break now. We'll have a very full afternoon. So make sure to take advantage of the lunch hour. Then we will be back at 1:10, and we will go through to roughly 5:00.

Remember the admonition. Remember also my prior observations to you that real life trials are not like on TV. They come with delays. They come with behind-the-scenes work, and we are doing our best to maintain the schedule and are doing pretty well by contemporary standards. So we're going to do our best to get a full afternoon in for you, and we'll see you back here at 1:10. Thank you.

(Jury out 12:11 p.m.)

THE COURT: All right. You may be seated. The jury has left the courtroom.

Let's talk briefly, before I let you go, regarding the draft instructions that we provided during the extended morning break. What I would like to do is -- I know you've got a lot of things to worry about in the middle of a trial. Even at this point in my service on the bench, I've still spent nearly as much time behind those tables as behind this one in my career. So I appreciate that you have a lot of moving parts and things to worry about, but I would ask you to give some of the time available during the lunch hour to reviewing the draft instructions. I'll give you a bit of context to help in that.

First of all, the instructions incorporate the typical pattern procedural instructions. You will see in Instruction 1 -- the last line in Instruction 1 is one that I add to the pattern instruction. I do that because, in my experience, it helps to relieve the anxiety of the jury to know that when they go back to the deliberation room, they will have a copy of these instructions. Otherwise, you see folks either tuning out or writing furiously, and we want them to primarily listen to the instructions.

You will then see -- there are a number of them that we'll talk about that we might need to slightly modify based upon the options in the pattern instructions depending upon -- Ms. Rea, depending in part upon your preferences on -- once the

Government has rested, in other words. I think you know what those are, and we'll talk about those.

As far as the substantive instructions on the elements, there are five instructions. Each crime charged has a separate instruction. Obviously, because these are similar, they follow the same pattern with perhaps a difference in date. And then there are thereafter instructions regarding the special verdict. The form in draft is also attached at the end.

When we had our final pretrial conference, I mentioned to you that it is my practice to give the substantive instructions first, before closing arguments, and then save the final procedural instructions that relate to their actual work -- deliberating. Those I give after the closing arguments and before they are dismissed to begin deliberating.

I don't give an instruction on the selection of the alternates. I'll simply tell them, "I am now done with the instructions. Before we send you back, we have to randomly select two of you to serve as alternates." That's the most efficient way I have found to handle that process.

So, obviously, the instructions on the elements are where you should spend the most time. These track the Sixth Circuit pattern instruction for Section 875; is that right?

DEPUTY CLERK: Yes, sir.

THE COURT: And so I think they're -- I think the crimes charged here are well served by that similar pattern

instruction, but we can talk about that. I just wanted to highlight for you that that's where you should spend most of your time.

When we come back at the end of the break -- I'll ask you-all to come in a few minutes before 1:10. So if you can be back by 1:00, 1:05, we can talk then about when to schedule the discovery conference.

And with respect to the process for the discovery conference, I will ask you-all to confer in advance. So you'll need to take that into consideration when we try and figure out when to fit this in, at the end of the day today or early in the morning tomorrow before testimony, whatever the case may be.

I'll want you-all to confer because what I want to spend our time on are the instructions for which you-all disagree. I'm not gonna painfully go through every single instruction if there's no disagreement about them, particularly given that they're well-worn pattern instructions.

So what I'll ask you-all to do is confer and then let us know which ones you have either agreement that need to be changed or disagreement about what is there, and that's -- that will be our agenda in the discovery conference.

All right. Any questions about any of that?

MR. TIEKE: No, Your Honor.

MS. REA: No, Your Honor.

THE COURT: Anything else you think we need to take up

now before the lunch break?

MR. TIEKE: No, Your Honor.

MS. REA: No, sir.

THE COURT: And you'll have your next witness ready to go?

MR. TIEKE: Yes, Your Honor.

THE COURT: All right. I'll see you then.

(Recess at 12:18 p.m. until 1:10 p.m. Jury out.)

THE COURT: Good afternoon. We are back on the record in U.S. v. Craft. Let's talk now about a schedule for instructions. Have you-all had a chance to at least begin your review of the drafts provided earlier?

MR. TIEKE: We have, Your Honor. And in consultation with the defense, I don't anticipate the instruction conference taking all that long. So we would just have it at the convenience of the Court. Tonight or tomorrow morning, either is fine with us.

MS. REA: And I agree, Your Honor. I've been able to review the draft instructions, talk to the U.S. I don't think it will be a lengthy conference so whenever it works for the Court.

THE COURT: Why don't we do this: Let's schedule it for in the morning. So let's set it for 8:15. And then we can -- that'll give us plenty of time, even if -- even if we -- and perhaps this is being too ambitious. Even if we get through

all testimony tomorrow, I think we would still have time to make any necessary revisions and get a final list of -- or a final compilation of instructions together. So we'll plan on doing that at 8:15. That will give you-all a little more time to finalize your review and confer as necessary.

Anything else we need to talk about before you call your next witness?

MS. REA: No, Your Honor.

THE COURT: Let's have the jury.

(Jury in 1:12 p.m.)

THE COURT: Welcome back, members of the jury.

Mr. Tieke, is the United States ready to call its next witness?

MR. TIEKE: Yes, Your Honor. The United States calls Matthew Lanham.

(MATTHEW LANHAM, called by the Government, sworn.)

DIRECT EXAMINATION

BY MR. TIEKE:

Q. Good afternoon, sir.

A. Hello.

Q. Can you please state your name for the jury.

A. It's Matthew Lanham.

Q. Mr. Lanham, what do you do for a living?

A. I'm a chief information officer for a manufacturing company here in town.

Q. How long have you been doing that?

A. About four years.

Q. Sir, are you pretty well versed in security cameras?

A. I am.

Q. Pretty well versed in computers and information technology, things like that?

A. Yes.

Q. And, sir, where do you live?

A. 505 [redacted].

Q. And that's in the [redacted] cul-de-sac?

A. Yes.

Q. I'm gonna show you what's been admitted as United States Exhibit 1. And then just so the jury can orient themselves, is this your house here at 505 --

A. Yes, that's correct.

Q. -- [redacted]? And your garage kind of faces toward the cul-de-sac there?

A. Yes.

Q. And when did you move into 505 [redacted]?

A. 2018.

Q. And so you've been there --

A. Almost five years.

Q. Five years. And do you know where the defendant, Suzanne Craft, lives?

A. Yes. She lives right next door.

Q. 507?
A. Yes.
Q. And was she living there before you moved in?
A. Yes.
Q. And who lives here at 510 [redacted]?
A. The Pinedas.
Q. And that's here on the map?
A. Yes.
Q. And did they move in after you did?
A. They did.
Q. And so was your driveway essentially straight across from the Pinedas' house?
A. Yes.

MR. TIEKE: We can take that down, please.

Q. Do you have surveillance cameras on the outside of your house there at 505 [redacted]?
A. I do.
Q. When did you install those?
A. Shortly after I moved in, probably the same year.
Q. 2018?
A. Yeah.
Q. And where are your cameras located?
A. Generally around the outside perimeter of my house, so driveway, front yard, backyard.
Q. You have some on the garage area?

A. I do, yeah.
Q. And what areas of your yard do all your cameras capture?
A. Generally all of my front yard, all of my driveway, my backyard, and kind of like my deck area in the back.
Q. And because of the way your house kind of sits, does it -- are your cameras on your garage, are they able to capture like other homes and driveways in the cul-de-sac?
A. They are.
Q. I'm gonna show you what's been marked as United States Exhibit 40. Do you recognize that photograph?
A. Yes, that is my driveway.
Q. And is that a photograph from one of your cameras that you have there on your garage?
A. Yes.
Q. And does this -- I know this image -- was it taken in March of 2023?
A. It was.
Q. Has that camera there, has that been in the same spot since you put it in in 2018?
A. It has been.
Q. So does that view -- this picture, does that truly and accurately reflect the view of that particular surveillance camera on your garage?
A. It does.
MR. TIEKE: At this time, Your Honor, I'd move to

admit United States Exhibit 40 and publish that for the jury.

MS. REA: No objection.

THE COURT: It will be admitted.

(Government Exhibit 40 admitted in evidence.)

BY MR. TIEKE:

Q. So this is your driveway right here?

A. Yes.

Q. And across the street, is that the Pinedas' driveway over there?

A. It is.

Q. And is this driveway -- is that Ms. Craft's driveway?

A. Yes.

Q. And is this over there, is that kind of a walkway?

A. Yeah, that is a walkway to her front door.

Q. So that's her driveway, and there's a walkway that goes up to the front door?

A. Correct.

Q. And let's talk about your cameras there. Those cameras that you have, do they continuously record?

A. They do.

Q. And so at times, though, are there kind of gaps in those recordings?

A. There are occasionally if the cameras will glitch out or something. It's set to record continuously, but software doesn't always work. So sometimes there are glitches.

Q. And is that because they might get disconnected from the Wi-Fi?

A. The internet, any of the hardware in between.

Q. So these cameras continuously record. Are they necessarily motion activated?

A. They're not, no.

Q. So you don't get like -- do you get movement alerts when something happens or anything like that?

A. I don't, no.

Q. And how long does your system retain those videos that it records?

A. Roughly two weeks.

Q. And then do you have to pull them down to keep them?

A. Yes.

Q. And so if you don't pull them down from your system and save them somewhere separately, what happens to them after the two weeks?

A. The oldest get overwritten with new footage. It just continuously cycles.

Q. Okay. So let me take you to June 7th, 2020.

MR. TIEKE: We can take that down, please. Thank you.

Q. Did you become aware of, you know, vandalism occurring in the neighborhood on June 7th, 2020?

A. Yes.

Q. How did you first become aware of vandalism occurring in the

cul-de-sac at that time?
A. That morning -- I believe it was -- I opened the garage door or something, and I saw the police in the neighborhood, in the cul-de-sac. And that's, you know --
Q. Okay.
A. -- unusual.
Q. And what did you do after that?
A. I approached the officers, because they were in Ms. Craft's driveway, and let them know that I had a camera and pointed in that general direction.
Q. So the police were in Craft's driveway, and you walked over there?
A. Yes.
Q. Okay. And when you walked over to Craft's driveway on June 7th, 2020, did you observe paint on her driveway?
A. I did.
Q. And what color was it?
A. Orange.
Q. Orange?
A. Yeah.
Q. And so if I pull up here -- let me pull up Exhibit 40. This is the view of your camera, present day view -- relatively present day. On the screen there -- and you can touch it, if you want.
A. Okay.

Q. From your observations when you walked over to that driveway, where was the painting that you saw?
A. It was in kind of this general area.
Q. And so from your observations, was it below or above the walkway running to her front door?
A. Below.
Q. And as you were at Craft's driveway, did you also notice if -- the Pinedas at 510, if they had anything on their driveway?
A. I believe, yes. I didn't go over there to their house but could kind of see it as I was going there.
Q. What color was that paint?
A. I believe it was orange as well. Like I said, I didn't go over to their driveway so --
Q. So did you see what was on their driveway?
A. I did not.
Q. Okay. And so the police were there, and what did you tell the police?
A. That I had cameras that pointed in that general direction, that I might have footage.
Q. And did you -- did you just offer to go and search that footage for something that might have happened?
A. Yeah. Obviously, I told them I had it, if they needed it or wanted it.
Q. And were -- what was the initial time that you were told to search?

A. Around like 3:00, 3:30, somewhere in the morning there the previous night.

Q. And who told you to search that time?

A. I believe it was Ms. Craft. The police officer asked Ms. Craft about what time. She was the one that said about that time.

Q. And that was -- was it -- you said 3:30. Was that 3:30 a.m.?

A. Yes, a.m.

Q. So did the police officer tell you that Ms. Craft said search around 3:30 a.m.?

A. Yes.

Q. And so what'd you do at that point?

A. At that point, I went back to my house and just kind of started looking at the footage. The server is in my basement. So I went down there and started kind of looking through it around that time.

Q. Did you look around that 3:30 a.m. time frame?

A. Yeah, that is where I would have started.

Q. So did you kind of -- did you look a little bit before that?

A. Yes. Since it was 3:30, I probably started about 3:00 and just kind of went from there. My cameras record in one-hour increments. So I would have started at the 3:00 a.m. clip as the starting point.

Q. So what did you find there at the 3:30 -- around the 3:00,

3:30 a.m. time frame?

A. I didn't find anything when I was searching through that footage.

Q. Okay. At some point did the police come over and tell you to look at a different time?

A. They did.

Q. And what time was that?

A. Around the 1:30-2:00 mark a.m.

Q. And when you went back and looked at the 1:30 -- between 1:30 and 2:00 a.m. footage from your -- from June 7th, 2020, what did you find?

A. I did find a video of an individual around 1:40, '50 a.m., somewhere around there.

Q. Okay. I'm gonna show you what's been marked as United States Exhibit 25.

THE REPORTER: Is this admitted?

MR. TIEKE: No, ma'am, for the witness only.

And if we'll play just a little bit.

(Government playing video.)

MR. TIEKE: That's good.

BY MR. TIEKE:

Q. You recognize that video?

A. I do.

Q. Is that a copy of your surveillance video of June 7th, 2020, 1:49 a.m.?

A. It is.
Q. Does that truly and accurately reflect your surveillance video of June 7th, 2020, at approximately 1:49 a.m.?
A. It does.
MR. TIEKE: Your Honor, I move to admit United States Exhibit 25 and publish.
MS. REA: No objection, Your Honor.
THE COURT: It will be admitted.
(Government Exhibit 25 admitted in evidence.)
MR. TIEKE: All right. If we could pull that.
BY MR. TIEKE:
Q. So this is June 7th, 2020, 1:49 a.m.; is that correct?
A. That is correct.
Q. And so this is your driveway?
A. Yes.
Q. And the Pinedas' driveway is over in this area?
A. Yes.
Q. And is this their fountain right here?
A. Yes.
Q. And then here's -- is this Ms. Craft's driveway?
A. It is.
Q. And as we saw from that other daylight shot, is there a -- is this the walkway approximately in that area?
A. Yes.
MR. TIEKE: We can go ahead and play this video,

please.

(Government playing video.)

Q. Sir, what did you appear to see in that video?

A. An individual walked up Ms. Craft's driveway, was at the very top of the visible driveway there for a bit, and then walked back down and cross into the neighbor's driveway, it looks like.

Q. Does it appear that this individual went above the walkway leading to Craft's door?

A. Yes.

Q. Does it appear that that's where the individual spent the majority of the time on that video?

A. Yes.

Q. And when you personally observed the painting on Craft's driveway later this morning, was it below the walkway?

A. It was.

Q. And so from your observations of your own video and your observations of the driveway painting on Ms. Craft's driveway, do you believe that this surveillance video from June 7th, 2020, at 1:49 a.m., captured Craft's driveway being painted?

A. It doesn't appear so, no.

Q. And as we talked about earlier, when you went back and reviewed the footage, you were asked to look around two times in the early morning hours of June 7th, 2020?

A. Uh-huh.

Q. Is that a yes?
A. Yes. Sorry.
Q. I'm sorry. It makes it difficult. She's got the hardest job. So we need to say yes or no.
A. Yeah, sorry.
Q. Thank you. And did you review the entire late-night hours of June 6th, 2020, the night -- the night before this?
A. It wouldn't have been the entire night. It would have been probably several hours on either side of what I was asked to so --
Q. And so similarly, did you review all of the hours in the morning of June 7th, 2020, leading up to the -- during the two times you were asked to do it?
A. No.
Q. So, essentially, did you sit down and watch from when it got dark on June 6th all the way up to the next morning when it got light on June 7th, 2020?
A. No.
Q. And because you didn't sit there and watch the entire night, I mean, could there have been other things that happened this night?
A. It's possible, yes.
Q. And so would any footage of that, would that be gone now?
A. At this point, yes.
Q. And why's that?

A. Because my cameras overwrite every two weeks or so.
Q. And so after this June 7th, 2020, incident, did you add more cameras to your house?
A. I did add one additional.
Q. And why'd you do that?
A. Just because of things going on in the neighborhood, I wanted more coverage of my yard. This camera doesn't see to the left into my yard as much; so I just wanted more coverage on my yard and the cul-de-sac.
Q. Okay. Let's talk about June 16th, 2020. Did you become aware of vandalism occurring in the cul-de-sac on June 16th, 2020?
A. I did become aware of it but not on the next day or anything. It was just through talking with neighbors later on.
Q. And which of your neighbors had their driveway vandalized that day?
A. The Pinedas.
Q. At 510?
A. Yes, 510.
Q. Did you go and review your -- did you find out in enough time to go back and review your footage?
A. I don't believe I did. I think it would have been after.
Q. And did you go and review your camera footage for around June 16th, 2020?
A. You know, I did. I'm sorry. I did, yes. I did review it.

It would have been within that two-week span.

Q. So at some point in that two-week span --

A. Yes.

Q. -- you might have found out about their --

A. Yeah.

Q. -- driveway. And so did you go back and review your footage?

A. I did, yes.

Q. And did you find something from June 16th, 2020?

A. I did, yeah.

Q. I'd like to show you Exhibit 26, please. You recognize this video?

A. Yes.

Q. And is it a copy of your surveillance video from June 16th, 2020, at 3:26 a.m.?

A. Yes.

Q. Have you reviewed this prior to your testimony today?

A. Yes.

Q. Does this video -- does this truly and accurately reflect your surveillance video of June 16th, 2020, at 3:26 a.m.?

A. It does.

MR. TIEKE: Your Honor, I'd move at this time to admit United States Exhibit 26 and publish.

MS. REA: No objection, Your Honor.

THE COURT: It will be admitted.

(Government Exhibit 26 admitted in evidence.)

MR. TIEKE: Just a second. Thank you.

BY MR. TIEKE:

Q. And so is this the video you pulled down from the early morning hours of June 16th, 2020?

A. Yes.

Q. And, again, this is your driveway here, the Pinedas' is across the street, and is this Craft's driveway right here?

A. Yes.

MR. TIEKE: Okay. We can play that, please. Thank you.

(Government playing video.)

Q. Mr. Lanham, what does that video appear to capture?

A. It shows an individual walking down Ms. Craft's driveway along the sidewalk to the Pinedas, spending some time over in their driveway, and walking back and back up Ms. Craft's driveway.

Q. When the person walked down, could you tell which driveway they came down?

A. Yes, Ms. Craft's.

Q. And then -- because there's kind of some hedges there?

A. Uh-huh.

Q. Could it have been either driveway on the drive walking down?

A. It looked to me like it was in Ms. Craft's driveway. The

hedges are between -- on the other side of her driveway from my camera's perspective.

Q. Okay. From your camera's perspective?

A. Yes.

Q. And then where did that individual go?

A. Walked over to -- along the sidewalk to the Pinedas' driveway, looked like there was some movement in their yard and then into their driveway and spent some time in their driveway, it looked like, bent over and doing something and then walking back.

Q. Walking back and then, from your camera's perspective, walking back up which driveway?

A. Ms. Craft's.

Q. Okay. Let's talk about --

MR. TIEKE: We can take that down, please. Thank you.

Q. -- June 27th, 2020. Did you become aware of vandalism occurring in the cul-de-sac on June 27th, 2020?

A. Yes.

Q. What did you learn about that painting on June 27th, 2020?

A. That would have been that morning. We had a yard sale. So my car -- during the yard sale, it was -- I could see it across the street and --

Q. And which of your driveways -- which of your neighbors -- excuse me -- had their driveways vandalized?

A. The Pinedas.

Q. And did you personally observe what was painted?
A. I did.
Q. Was it a racial slur?
A. It was.
Q. And what color was the paint?
A. It was gold.
Q. Did you again go ahead and go back and review your camera footage?
A. I did.
Q. Did you find something?
A. I did.
Q. I'd like to show you United States Exhibit 27, please. And this has got the date stamp on it here. You recognize this video?
A. Yes.
Q. Is it a copy of your surveillance video of June 27th, 2020, at approximately 2:41 a.m.?
A. It is.
Q. Does it truly and accurately reflect your surveillance video of June 27th, 2020, at approximately 2:41 p.m.?
A. Yes.

MR. TIEKE: At this time I'd move to admit United States Exhibit 27 and publish.

MS. REA: No objection, Your Honor.

THE COURT: It will also be admitted.

(Government Exhibit 27 admitted in evidence.)

BY MR. TIEKE:

Q. And so, Mr. Lanham, you pulled this video down from the early morning hours of June 27th, 2020?

A. Yes.

Q. Same camera we've all been looking at here?

A. Correct.

MR. TIEKE: And so we can go ahead and play that.

(Government playing video.)

Q. Sir, what appears to happen in that video from, you know, the perspective of your camera here?

A. An individual walks down Ms. Craft's driveway along the sidewalk over to the Pinedas' driveway, spent some time in that driveway, appears to be bent over and then walks back on the sidewalk and back up Ms. Craft's driveway.

MR. TIEKE: Thank you. That's good. You can take that down.

Q. Sir, you said you lived at 505 --

A. Yes.

Q. -- [redacted].

A. Yes.

Q. I'm gonna show you what's been admitted as United States Exhibit 9A, page 1, please. This is one of the mailings the Pinedas received. Do you see that word up there, "N-let Destroyer"?

A. I do.
Q. And is that your address there under that "N-let Destroyer"?
A. It is.
Q. And is this used on a mailing addressed to your neighbor, "Michelle" Pineda?
A. It is.
Q. And 9B-6. Sir, inside that envelope was there what appears to be a threat that says, "Die, die, stupid N-word, die," or something like that?
A. Yes.
Q. You ever use the word "N-let" in your return address?
A. I have not.
Q. You ever send your neighbor, the Pinedas, a threat saying this?
A. I have not.
Q. Have you ever allowed anyone to use your return address to send threats?
A. No.
Q. You ever specifically allow Ms. Craft to use your address for any purpose?
A. No.

MR. TIEKE: Thank you, Your Honor. I'll tender the witness now.

THE COURT: Ms. Rea.

MS. REA: Thank you, Your Honor.

CROSS-EXAMINATION

BY MS. REA:

Q. Hi, Mr. Lanham.

A. Hello.

Q. I just have a few questions for you. The first thing I'm gonna ask you about using the Elmo and show you what has been introduced as United States Exhibit 40, which you'll recognize is the present day photo once we get it up there.

Okay. It looks better the other way, I admit that. Directing your attention to Ms. Craft's driveway and the adjoining driveway, that adjoining -- the adjacent driveway. The driveway that is right next to Ms. Craft is Ms. Probst's driveway; correct?

A. Yes.

Q. And we can kind of see in that photo where there's a strip of grass between the two driveways; is that right?

A. Yeah. It's flowers. It's not just grass.

Q. It looks like what?

A. It's flowers.

Q. Flowers?

A. Yeah.

Q. Okay. Is sometimes -- poor question. There have been times when there's more foliage in that area, correct, separating the two driveways?

A. That is correct, yeah.

Q. So sometimes it's taller than it is now?
A. That is correct.
Q. In the video that -- videos you've been looking at, indeed, is it taller at that point?
A. Yes, it appears to be.
Q. Okay. And that -- those driveways, that area of your video, that was at the top, the far screen of that; right?
A. Correct.
Q. And when you see the figure walking, are there times when the figure is walking where they sort of -- you can't see them for a little bit because --
A. Yes, that is correct.
Q. -- it's hard to make out exactly where somebody is, okay, against that foliage.

MS. REA: That's all for that. Thank you.

Q. After the 6-7 event happened, you've said you offered and also, I believe, provided your video to law enforcement; right?
A. Yes.
Q. Okay.
A. After that event, yes.
Q. And you also provided it to Ms. Craft?
A. Yes.
Q. So when you provided it to her after 6-7, she knew what the view from your cameras looked like; right?
A. Yes. I assume she watched it, yes.

Q. She'd seen the video, sure. And she posted that video on a social media site; correct?

A. Yes.

Q. Okay. And you -- I'm gonna use a real lay person's term, and correct me if I'm wrong -- broke the link?

A. Yes.

Q. And was that so that the public couldn't see the view that your camera would capture?

A. Correct, yes.

Q. So to protect your security and your privacy, you didn't want that view up there?

A. That is correct.

MS. REA: Okay. I don't have any other questions for you. Thank you for being here.

THE WITNESS: Okay.

THE COURT: Any redirect?

MR. TIEKE: No, Your Honor.

THE COURT: May the witness be excused?

MR. TIEKE: Yes, Your Honor.

THE COURT: Thank you. You may step down.

Is the Government ready with the next witness?

MR. TIEKE: Yes, Your Honor. The United States calls Brian Recktenwald.

(BRIAN RECKTENWALD, called by the Government, sworn.)

DIRECT EXAMINATION

BY MR. TIEKE:

Q. Good afternoon, Mr. Recktenwald.

A. Hello.

Q. Could you please state your name for the jury.

A. My name is Brian Recktenwald.

Q. And, Mr. Recktenwald, what do you currently do for a living?

A. I'm a school teacher. I teach the fourth grade.

Q. How long have you taught fourth grade?

A. This is my 22nd year of being an elementary school teacher, and I have been teaching fourth grade for the last six in Jefferson County.

Q. And, Mr. Recktenwald, what is your address?

A. 508 [redacted], Louisville, Kentucky, 40245.

Q. Thank you. How long have you lived at that address?

A. We moved in officially about January 2020.

Q. Okay. And do you know who lived there before you?

A. It was the Conleys.

Q. Okay. Do you -- are you neighbors with Connie and Michella Pineda?

A. Yes.

Q. And is your house directly next door to theirs?

A. Yes.

Q. I'm gonna show you what's been admitted as United States Exhibit 2, and we can just kind of focus on the houses. If we could go a little bit -- there we go. Is that your yellow house

there at 508?

A. Yes.

Q. Okay. If we could move forward to 510. And is that the Pinedas directly next door to you?

A. Yes.

Q. So here's your driveway. Here's the Pinedas' driveway?

A. Correct.

Q. If we could go around to -- and who lives here in this red brick house?

A. That's Suzi Craft.

Q. And is -- what's the address there?

A. Is that 50 -- is it 510?

Q. No, that's the Pinedas.

A. Oh, 508. I'm sorry. 509.

Q. Does she live at 507 [redacted]?

A. Or 507, yes. I know they're out of order.

Q. 507?

A. Yes.

Q. Okay. And so do you know the Pinedas?

A. Yes.

Q. How many children do they have?

A. They have five.

Q. Are you friendly with the Pineda family?

A. Yes.

Q. When you first moved in, did your children interact with the

Pineda children?

A. Yes.

Q. Did they play together?

A. Yes.

Q. Sir, do you know your other neighbor, Suzanne Craft?

A. Yes.

Q. Okay. I'd like to show you United States Exhibit 3. Is that a photograph of your neighbor, Suzanne Craft?

A. Yes.

Q. Have you observed her in the neighborhood before?

A. From time to time. I know as she's going in and out of her house, maybe Halloween I remember seeing her walking through the neighborhood, cutting her grass.

Q. Does she typically wear that kind of clothing in that photo there?

A. Yes. When I see her -- most times when I've seen her, whether it was in the neighborhood or if I was out -- I'm very familiar with the -- she would have a black visor or a hat on and a black shirt and black pants, it seemed, often.

Q. And, I mean, do you have any real issues with Ms. Craft?

A. No.

Q. Do you know who lives at her house at 507 with her?

A. I believe it's her daughter.

Q. Okay. Is she younger or older?

A. Younger. I want to say, I think, she was, you know, between

12, 13, 14.

Q. So not an adult daughter?

A. No.

Q. Okay. Let me take you to June 7th, 2020.

A. Okay.

Q. Did you personally observe the Pineda driveway after it had been vandalized by paint?

A. Yes.

Q. And what color was that paint?

A. I remember the orange paint.

Q. I'm just gonna briefly show you Exhibit 18. You recognize that as the driveway painting from June 7th, 2020?

A. Yes.

Q. And were you with Connie and Michella when they saw that painting?

A. Afterwards, yes, in the morning.

Q. What was their reaction?

A. Angry, upset. You know, I would say embarrassed as well.

Q. Were you aware that Ms. Craft also had a painting on her driveway too?

A. Yes.

Q. And did you see that one?

A. No. I did not walk over to see that.

MR. TIEKE: Okay. We can take that down, please.

Q. And were there police in the neighborhood?

A. Yes.
Q. And were neighbors gathered there to look at the Pinedas' painting?
A. Yes.
Q. What was -- what was Ms. Craft doing?
A. From what I remember, a number of neighbors gathered, and we were talking out in front of our house and the Pinedas. And I remember Ms. Craft sitting on her porch. And I just felt that was -- at the time, just my thinking was that was just kind of odd that there wasn't the interaction that if she just got spray-painted and that they got spray-painted that they would talk about it. It seemed kind of odd to me.
Q. Okay. Let's just move to the fall of 2020. Did you witness the Pinedas receiving a threatening mailing?
A. Yes.
Q. And were you-all outside together at that time?
A. Yes.
Q. And who was out there?
A. So there's a middle section between our driveways, and I remember walking over and talking with Connie. And she was there talking and with that -- I don't know if the mailman had come up, but Michella went down to check her mail.
Q. So outside that day was you, Michella, and Connie?
A. Correct.
Q. Okay. And who went to go down there and get the mail?

A. Michella.

Q. Okay. And what happened next, sir?

A. With that, Michella returned back from the mailbox, and she had mentioned something like, "This may be one of the letters we have been receiving." And she proceeded to open the envelope as she was walking up towards Connie and I.

Q. And so did she open it in front of you?

A. Yes.

Q. Did you see the contents?

A. Yes.

Q. I'm gonna show you what's been admitted as United States Exhibit 10A, and if we can scroll through those, please.

Sir, now I'm gonna show you United States Exhibit 10B, which are different photographs of the same mailing here.

Sir, you recognize those as photographs of the letter you saw the Pinedas receive and that they opened with you there?

A. Yes.

MR. TIEKE: If we could go to 10A-4, please, and then 10A-5, please.

Q. When they opened it, you recall seeing something that looked like a bullet in this mailing here?

A. Yes.

Q. What do you recall -- do you recall it being placed in -- inside of something?

A. Yes. I remember them -- or her getting something out of the

envelope and unfolding it. What really stood out -- you know, when seeing these pictures again, it -- the pasta container, that it was kind of cut out or folded up because I've purchased that before. You know, it was just kind of odd. That just -- that stuck out.

But I remember her holding it out, kind of in her hand after she undid it, and her hands kind of shaking and just -- was just shocked, you know. And at that point, I mentioned to her, I said, "You know, we need to put it back in. That way you can give it to the police and use it as evidence and just not do as much with it."

Q. Do you recall seeing cutout letters?

A. Yes.

Q. Okay. I'll show you 10B-8, please. Do you recall seeing something similar or that?

A. Yes. I know when I was interviewed by the FBI, I said I remember something saying like "move out" and then seeing this, the "get out." I do remember seeing that where, when she folded it out, that the letters were cut out.

Q. You remember the cutout letters?

A. Yes.

Q. And you mentioned this, but you observed the Pinedas' reaction to this?

A. Yes.

Q. And how would you describe that?

A. I mean, frightened, definitely angry, and -- you know, and then as I mentioned, you know, Michella was just, you know, nervous as she was holding it and just -- you know, just seemed like an escalation of what events had transpired from weeks and the month before. It just seemed, you know, just very --

Q. Scared?

A. -- scared.

Q. You stated earlier that, you know, the Pineda children had often played together when you first moved in in 2020. Did that change?

A. Yes.

Q. When did that change?

A. It slowly began changing with the number of incidents that had occurred over that summer, definitely after receiving the bullets in the mail.

You know, my -- I have three sons, and my middle son Noah would play with S.P.1[redacted] from time to time. Their kids would play out in the front yard often. In our cul-de-sac, they would ride their bikes. And I just feel like that moving forward after that -- they had a fence put up in their backyard, and they kept more to themselves and remained inside more often.

Q. And specifically after this letter, did you and the Pinedas come to an agreement regarding what to do if something were to happen?

A. Yes.

MS. REA: Objection, Your Honor. May we approach?

THE COURT: Yes.

(Bench conference on the record.)

MS. REA: Your Honor, my objection is as to the relevance versus the prejudicial impact of this testimony. I think the point is that it is -- the experience was so scary, they had a plan in place about what to do.

The Pinedas themselves have already expressed their reaction in quite a lot of detail. I think at this point it's just kind of piling on and making it more inflammatory than any probative value that it has.

MR. TIEKE: Your Honor, I think it's relevant. He's gonna say that there was an agreement that if something were to happen, that the kids would come over to his house, if something were to happen at their house.

So it demonstrates the Pinedas' genuine reaction to the threats and their desire to protect their children from those threats, and it goes to the analysis of the true threat nature that we have to prove.

THE COURT: Anything further?

MS. REA: No, sir.

THE COURT: I'm gonna let you -- I think it goes potentially to one of the elements with respect to the mailing threatening communications, so I'll let you get into it. Because we didn't hear anything about this from either of the

Pinedas, I think it necessarily needs to be brief.

MR. TIEKE: I have one question. I'll let him answer, and I'll sit down.

THE COURT: Thank you.

(End of bench conference.)

BY MR. TIEKE:

Q. Sir, go ahead. Specifically after the mailing, did you and the Pinedas come to an agreement regarding what to do if something were to happen?

A. Yes.

Q. Okay. What was that?

A. I had pulled in from work not too long after the bullets were received in the mail, and as I was getting out of my Jeep, Connie just motioned to me and asked me to just talk. She wanted to ask me something real quick.

And she had asked -- she said, you know, since receiving pretty much the bullets in the mail, that with things being escalated, she had asked that if, you know, there was ever any threat or if they ever felt like that something bad would happen at their house, that her kids and -- their kids would be able to come over to our house. And I told her absolutely, at any time they could come front/back door if there was ever fear of any retaliation or any -- any escalation of what was occurring.

MR. TIEKE: Thank you, sir. No further questions, Your Honor.

THE COURT: Ms. Rea.

MS. REA: Thank you, Your Honor.

CROSS-EXAMINATION

BY MS. REA:

Q. Hi, Mr. Recktenwald. I have only a couple questions for you. My name is Angela Rea. When you were present for the receiving of the item that you have been shown with the bullets in it, that was an item that you said Michella Pineda removed from the mailbox while you were present.

A. Yes.

Q. Okay. She walked away -- it sounds like you guys were standing right next to the mailbox. She walked over, took it out of the mailbox, and brought it back; is that right?

A. We were standing at the end of the driveway -- the mailbox was at the end. We were standing in between towards the very end of the driveway, yes.

Q. Okay. And you don't recall -- did she take the item apart in front of you? I'm trying to get at what you saw once she had the item in her hands, because as you've seen, there's an outer envelope, an inner envelope. What did you see at that point?

A. I remember her opening up the envelope, and I remember her getting something out, whether it was an envelope or the cutout. And then I -- I remember some kind of baggie or something along that line that -- the purple gloves and seeing the copper part of the bullets.

Q. Okay. And you had advice for them after you saw that the item had been received; correct?

A. Yes.

Q. Which was to put it up or put it away, something like that, and to get it to the police?

A. Yes.

Q. And that's what you suggested they do?

A. Yes.

MS. REA: Okay. That's all. Thank you.

THE COURT: Any redirect?

MR. TIEKE: No, Your Honor.

THE COURT: May the witness be excused?

MR. TIEKE: Yes, Your Honor.

THE COURT: Thank you. You may step down.

THE WITNESS: Thank you.

THE COURT: The Government's next witness.

MR. TIEKE: Yes, Your Honor. The United States would call Ms. Dena Ballenger.

(DENA BALLENGER, called by the Government, sworn.)

DIRECT EXAMINATION

BY MR. TIEKE:

Q. Good afternoon, ma'am.

A. Hello.

Q. I'll just ask you to keep your voice up. That microphone is right -- it's kind of right -- that bar right in front of you.

So we just want to make sure that everyone can hear what you have to say. Okay?

A. Okay.

Q. Could you please state your name for the jury.

A. Dena Ballenger.

Q. Ms. Ballenger, what is your current job?

A. Police report technician.

Q. And are you a civilian that works for Louisville Metro Police Department?

A. Yes, I am.

Q. Okay. How long have you been doing that job?

A. In May it will be a total of 16 years.

Q. And did you -- what was your previous role for Metro Police Department?

A. Prior to my current position, I was working for the Telephone Reporting Unit.

Q. And were you a civilian in that role as well?

A. Yes, I was.

Q. And so in total, how many years have you worked for LMPD as a civilian?

A. In May it will be a total of 16 years.

Q. Sixteen total?

A. Total, yeah, completely total for LMPD.

Q. And you had those two jobs in that 16 years?

A. Yes.

Q. Okay. In your current job, when someone calls in, what happens?
A. Well, in my current position, the police report technician, if someone comes in, then I'm dispatched out on a run.
Q. During the events of -- in 2020, when someone calls -- when called in, what would happen?
A. I would answer the phone. And they would either start straight off on what they were calling for, if they needed a report, or I would ask, you know, "What do you need a report for?"
Q. So in your role in 2020, you essentially fielded incoming calls to the Metro line?
A. Yes.
Q. Okay. And when someone called in, how do you confirm the caller's identification information when they do call in?
A. I ask their name, date of birth, their current address, their telephone number, and their sex and their race.
Q. Okay. And is that because you then confirm their ID and put it into a report?
A. Correct.
Q. Okay. Do you remember receiving a call from Suzanne Craft on November 30th, 2020?
A. As I can recall against the report that I reviewed.
Q. Was that call by phone?
A. Yes.

Q. On that call did you go through the process and confirm that Ms. Craft was the caller?
A. Yes.
Q. Okay. And what did you do?
A. I asked her name, date of birth, address, current phone number, and sex and race.
Q. And did she provide those from what you can recall?
A. Yes.
Q. And do you recall, what was the call about?
A. It was a theft of mail from her mailbox.
Q. And what date did she claim that her mail was stolen from her mailbox?
A. She claimed it was stolen on the 21st at 6:00 p.m.
Q. November 21st?
A. November 21st.
Q. Okay. And was she able to specifically identify exactly what mail she claims was stolen?
A. Yes.
Q. And what were those items?
A. She described those items as a Fifth Third Bank statement, a Visa credit card statement, and then a letter from the Girl Scouts.
Q. Okay. And so she reported the specific items on November 30th, 2020, that she claimed were stolen nine days before --
A. Yes.

Q. -- she called in?
A. Yes.
Q. Okay. And where did she specifically claim the items were stolen from?
A. Her mailbox.
Q. And did she claim to have video of the incident?
A. She stated that she observed that the mailman had delivered the mail to her mailbox through her Ring doorbell.
Q. As far as your interaction with this report, did -- was that ever provided?
A. As far as my interaction, no.

MR. TIEKE: Okay. Thank you, ma'am. No further questions, Your Honor.

THE COURT: Ms. Rea.

MS. REA: Thank you, Your Honor.

CROSS-EXAMINATION

BY MS. REA:

Q. Hi, Ms. Ballenger. I just have a couple questions for you. When this report was made to you, there was -- as you've said, there's a specific date that we're talking about, correct, 11-21?
A. Yes.
Q. And there wasn't an indication that there was video of the theft; right?
A. No. She just stated the observation of the theft -- or the

delivery from the observation of her Ring doorbell.

Q. She said she saw the mail being delivered through the Ring doorbell; correct?

A. Correct.

Q. And the next day it was gone?

A. Yes.

Q. And the report was made on November 30th; correct?

A. Yes.

MS. REA: I don't have any other questions. Thank you.

THE COURT: Any redirect?

MR. TIEKE: No, Your Honor. Thank you.

THE COURT: May the witness be excused?

MR. TIEKE: Yes, Your Honor.

THE COURT: Thank you. You may step down.

Members of the jury, we're going to take our afternoon break at this point for about ten minutes, and then we'll quickly reassemble and continue with testimony. Remember the admonition not to discuss the case. Thank you.

(Jury out 2:12 p.m.)

THE COURT: You may be seated. The jury has left the courtroom.

You'll be ready with your next witness?

MR. TIEKE: Yes, Your Honor.

MS. ZIMDAHL: Yes.

THE COURT: I would like to remind you that I reserved ruling on three of your evidence categories. Those would be 6, 7, and 8. Do you anticipate presenting testimony that would implicate those three categories today?

MS. ZIMDAHL: Let me flip to those briefly. Your Honor, I believe the answer is that will not be presented today.

THE COURT: All right. Anything else that we need to take up before the brief break?

MS. REA: No, sir.

MS. ZIMDAHL: No, Your Honor.

THE COURT: Thank you.

(Recess at 2:14 p.m. until 2:27 p.m. Jury out.)

THE COURT: We're back on the record. They are lining the jury up. Is there anything we need to address before you call your next witness?

MR. TIEKE: No, Your Honor.

MS. REA: No, sir.

THE COURT: It's not quite 2:30. There might be an occasion for another brief break this afternoon, but if it is not necessary and we can keep going, I'm happy to do that.

MR. TIEKE: Thank you, Judge.

(Jury in 2:28 p.m.)

THE COURT: You may call your next witness.

MR. TIEKE: Your Honor, the United States calls FBI Forensic Examiner Icel Kuznetsova.

(Transcript of testimony of ICEL KUZNETSOVA previously filed.)

THE COURT: Ms. Rea, before we move on --

MS. REA: Yes, Your Honor. I'm sorry. May we approach?

THE COURT: Yes.

(Bench conference on the record.)

MS. REA: I spoke before I actually heard you, and she would like a break. Thank you.

THE COURT: That's what I anticipated.

(End of bench conference.)

THE COURT: Members of the jury, we're now going to take another brief break of about ten minutes. Remember the admonition. I'll see you back here shortly.

(Jury out 3:31 p.m.)

THE COURT: You may be seated. The jury has left the courtroom.

Thank you for doing that. I was just -- I was trying to match --

MS. REA: Thank you for doing it.

THE COURT: I was just trying to keep track of the exhibits and -- well, I wasn't doing it adequately. So thank you.

Anything we need to talk about before everyone else gets a brief break?

MR. TIEKE: No, Your Honor.

THE COURT: We'll see you back here at 20 before the hour. Thank you.

(Recess at 3:32 p.m. until 3:50 p.m. Jury out.)

THE COURT: We're back on the record. The jury is not yet back in the courtroom. Are we ready to go with the next witness?

MR. TIEKE: Yes, Your Honor.

(Jury in 3:51 p.m.)

THE COURT: You may call your next witness.

MR. TIEKE: Your Honor, the United States calls FBI Forensic Examiner Jeremy Fletcher.

(Transcript of testimony of JEREMY FLETCHER previously filed.)

THE COURT: You may call your next witness.

MS. ZIMDAHL: The United States would call Forensic Examiner Hector Maldonado to the stand.

(Transcript of testimony of HECTOR MALDONADO previously filed.)

THE COURT: Let me ask counsel to approach, please.

(Bench conference on the record.)

THE COURT: It is 4:35. Do you have a quick witness? What --

MR. TIEKE: I think that the next three would --

THE COURT: Are all longer?

MR. TIEKE: Are all longer than the ones for today, yes, Your Honor.

THE COURT: I have your list pinned here on my iPad so that I can keep track, and that's what I was afraid you were going to tell me.

All right. Let's then break for the day.

MR. TIEKE: Thank you, Your Honor.

MS. REA: Thank you.

(End of bench conference.)

THE COURT: Members of the jury, we are now going to break for the day. The next witness and the witness following that are both expected to take longer than the 25-30 minutes we have roughly left today. So we're going to let you go for the evening.

Remember again the admonition. I enjoy saying it so much that I'm going to repeat it in detail. Please do not talk with each other as you're leaving the courthouse today. Do not contact each other during the evening to talk about this case. Don't talk with your family members, friends, or anyone else about the case. You can talk with each other about anything you like but the case.

We will see you back here tomorrow at 8:40, if you could check in, and we will be prepared to start. We believe it is possible the testimony will end tomorrow, but don't get your hopes up. It might take through -- as we predicted during the

big jury pool discussion, it might take until Friday, but it is possible that testimony will be completed tomorrow.

All right. We'll see you in the morning. Thank you very much.

(Jury out 4:38 p.m.)

THE COURT: You may be seated. The jury has left the courtroom.

I believe you have approximately three witnesses left; is that correct?

MR. TIEKE: That's correct, Your Honor.

THE COURT: Ms. Rea, you of course do not need to tell me nor the Government whether you intend to call anyone to the stand, but I'll invite you, if you are inclined, to let us know whether you expect to do so at this point.

MS. REA: Your Honor, I expect that we will have some testimony to put on.

THE COURT: All right. So I went out on a bit of a limb there with the jury, but it seemed to me that it is possible, even if you did present some testimony, that we might be able to get through tomorrow.

I know you'll have a longish time with the case agent; is that correct?

MR. TIEKE: Yes, Your Honor.

THE COURT: But I am hopeful that we could get through testimony tomorrow even if we cannot get all the way to closing

arguments or instructions. If we're able to get through testimony and then have a -- the final day on Friday with closing arguments, instructions, and getting the case to the jury midday, I think that would be a -- that would be a schedule that we could all strive for.

We already decided we would meet in the morning at 8:15 to discuss the draft instructions that have been provided. Is there anything there we need to preview before we break for the day?

MS. REA: Not from me, Your Honor, no.

MR. TIEKE: Not from the United States, Your Honor.

THE COURT: Anything else? Any anticipated witness issues? Evidentiary issues? We have not used our agreed upon 404(b) instruction yet. Do we anticipate we will do that tomorrow?

MR. TIEKE: No, Your Honor.

THE COURT: All right. I think that's all I have on my list. So unless there's anything else you-all can think of, we will break for the evening, and I'll see you at 8:15.

MS. REA: Thank you, Your Honor.

MR. TIEKE: Thank you, Your Honor.

MS. ZIMDAHL: Thank you, Judge.

(Proceedings concluded at 4:40 p.m.)

C E R T I F I C A T E

I CERTIFY THAT THE FOREGOING IS A CORRECT TRANSCRIPT FROM THE RECORD OF PROCEEDINGS IN THE ABOVE-ENTITLED MATTER.

s/Dena Legg — September 21, 2023
Certified Court Reporter No. 20042A157 — Date
Official Court Reporter

REDACTION CERTIFICATE

I certify that the foregoing is a true and correct copy of the transcript originally filed with the clerk of court on 09/21/23 and incorporating redactions of personal identifiers requested by the following attorney of record: Angela M. Rea in accordance with Judicial Conference policy. Redacted characters appear as a black box in the transcript.

s/Dena Legg — October 30, 2023
Certified Court Reporter No. 20042A157 — Date
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